

THE BOULEVARD SHOPPING CENTER

LEASE AGREEMENT

This Lease Agreement (the "Agreement") is entered into as of the 30 day of June, 2000, by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "Lessor").

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (hereinafter referred to as the "Lessee").

WITNESSETH:

WHEREAS, Lessor is the owner of that certain real property together with improvements located thereon known as The Boulevard Shopping Center located in Lafayette, Lafayette Parish, Louisiana ("Boulevard Shopping Center Property"); and

WHEREAS, Lessee wishes to lease a certain portion of the Boulevard Shopping Center Property from Lessor according to the terms and conditions set out herein.

NOW, THEREFORE, in consideration of the foregoing and other good and valuable consideration herein, the sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

Section 1.01 - Premises:

Lessor does hereby lease to Lessee, and Lessee hereby leases from Lessor the following premises (hereinafter called the "Premises"), more particularly described as follows:

Four Thousand Five Hundred (4,500) square feet located in the Boulevard Shopping Center Property as shown on the plat attached hereto as *Schedule A* and having the dimensions set forth thereon.

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- A. Lessee warrants and represents that it has inspected the Premises, and subject to the completion of the Lessor's construction obligations as set forth on *Schedule B* attached hereto ("Lessor's Construction Obligation"), accepts the Premises, including the building and improvements, in their present state except as set forth on *Schedule B*. Lessor agrees that the Lessor's Construction Obligation shall be performed and completed in a good and workmanlike manner.
- B. Intentionally Omitted.
- C. Lessor warrants and covenants that upon execution of this Agreement the Lessor shall, within a reasonable time submit the plans and specifications for the Lessor's Construction Obligation to the Lafayette Consolidated Government for approval thereby and issuance of a building permit for the construction of the Lessor's Construction Obligation. Upon issuance of the building permit for the construction of the Lessor's Construction Obligation, the Lessor shall prepare to begin construction of the Lessor's Construction Obligation, but shall commence construction on or before five (5) days from the date the Lessee notifies the Lessor in writing that the Lessee has received a building permit on terms acceptable to the Lessee authorizing the construction of the Additional Improvements (as hereinafter defined).

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The Lessor shall diligently pursue the construction of the Lessor's Construction Obligation and shall complete same within sixty (60) days of the date the Lessor commences construction of the Lessor's Construction Obligation.

The Lessor acknowledges that the Lessee shall construct improvements in addition to the Lessor's Construction Obligation ("Additional Improvements") and the Lessor and Lessee agree that the scope and nature of the Additional Improvements are set forth on *Schedule B-1* attached hereto and made a part hereof. The Lessee shall be solely responsible for the cost of the construction of the Additional Improvements, including, but not limited to all architectural and engineering fees associated therewith. Provided however, notwithstanding the foregoing, the Lessor hereby agrees to contribute to the costs of the Additional Improvements the sum of Sixty Thousand and 00/100 Dollars (\$60,000.00) ("Tenant Finish Allowance"). Further provided that the Lessor and Lessee hereby agree that the Tenant Finish Allowance shall be due and payable only upon completion of construction of the Additional Improvements in accordance with the Lessee's Plans and Specifications (as hereinafter defined) and that when due, the Tenant Finish Allowance shall be received by the Lessee in the form of a monthly credit toward the Base Rent (as hereinafter defined) payable by the Lessee to the Lessor in accordance with Section 4.01 of this Agreement. The monthly credit towards the Base Rent shall begin on the first day of the month following the date when the Tenant Finish Allowance becomes due and continue each month thereafter until the full amount of the Tenant Finish Allowance has been reimbursed to the Lessee by such credits. Nothing

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contained herein shall relieve the Lessee from payment of the Additional Rent beginning on the Commencement Date and thereafter during the Initial Term of this Lease Agreement. In the event the Tenant Finish Allowance is not yet due and payable on the Commencement Date, the Lessee shall pay the Base Rent and the Additional Rent as provided in Section 4.01 without any credit until the Tenant Finish Allowance becomes due and payable in accordance with the provisions hereof.

The Lessee shall be responsible for preparation of all construction plans related to such Additional Improvements ("Lessee's Plans and Specifications") and shall submit a complete set of the Lessee's Plans and Specifications to the Lessor for review within ten (10) days after the later of (i) the execution of this Agreement or (ii) the receipt from the Lessor of the Lessor's "as built" plans of the Premises in their existing condition. The Landlord shall thereafter review the Lessee's Plans and Specifications and shall, within ten (10) days from receipt of such plans and specifications deliver to the Lessee written approval of the Lessee's Plans and Specifications or a written statement disapproving the Lessee's Plans and Specification and reasons for such disapproval. The Lessee shall, within ten (10) days of receipt of the Lessor's disapproval, cause the Lessee's Plans and Specifications to be revised in accordance with the Lessor's instructions and resubmit the revised plans and specifications to the Lessor for written approval. In the event the Lessor and the Lessee, each acting in a commercially reasonable manner cannot agree on an acceptable set of the Lessee's Plans and Specifications on or before ten (10) days after the date of the original submission by the Lessee to the Lessor, then either party may terminate this Lease without further liability.

Upon receipt of the Lessor's approval of the Lessee's Plans and Specifications, the Lessee shall, within five (5) days of such approval, submit the Lessee's Plans and Specifications to the Lafayette Consolidated Government for the issuance of a building permit authorizing the construction of the Additional Improvements. The Lessee agrees to diligently pursue the approval of the Lafayette consolidated government and to use its best efforts to fulfill the requirements of the Lafayette Consolidated government and cause the building permit for the construction of the Additional Improvements to be issued without undue delay.

Notwithstanding any language contained herein to the contrary, in the event the building permit authorizing the construction of the Additional Improvements has not been issued by the Lafayette Consolidated Government on terms acceptable to the Lessee within ninety (90) days from the date of execution of this Agreement, the Lessor or the Lessee may terminate this Agreement.

- (i) Upon the occurrence of the later of (i) the issuance of the building permit authorizing the construction of the Additional Improvements or (ii) the completion of the construction by the Lessor of the Lessor's Construction

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Obligations, the Lessee shall commence construction upon the later of and shall complete same on or before 150 days from the date of commencement of the construction of the Additional Improvements ("Construction Completion Date"). For purposes of this Agreement, "completion of construction" shall mean the certification by the architect inspecting the construction that the work outlined in the Lessee's Plans and Specifications is substantially complete, less and except minor "punch list" type items and that the Premises is suitable for occupancy by the Lessee.

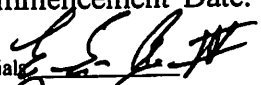
The Additional Improvements shall be constructed by the Lessee in accordance with all applicable local, state and federal laws, regulations and building codes. The Lessee shall not cause or permit any mechanic's lien or other lien to be recorded against the Premises in connection with the construction of the Additional Improvements and the Lessee hereby agrees to indemnify and hold the Lessor harmless and defend the Lessor from and against any such lien or claim or liability of any kind whatsoever arising, out of, in connection with or related to, directly or indirectly, to the construction of the Additional Improvements.

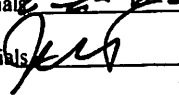
Section 2.01 - Use:

The Premises shall be used by Lessee during the term hereof as a full service deli restaurant to include the serving and sale of soups, salads, sandwiches, heart healthy food items, alcoholic and non alcoholic beverages and all other related food items and services, including such items that are typically served by other Jason's deli restaurants. The foods sold will be for on and offsite consumption and will include sales of outside catering and delivery of such catering items. Sales shall include the sale of alcoholic beverage. Provided however, the sale of alcoholic beverages shall be conditional upon the Lessee, at its sole cost and expense, obtaining all requisite state, local and federal licenses and permits for the sale of alcoholic beverages. Further, the Lessee shall at all times comply with all state, local and federal laws, regulations and ordinances governing the sale of alcoholic beverage to the public and Lessee agrees that any change in the use of the Premises shall require the prior written consent of the Lessor.

Section 3.01 - Term:

The term of this Agreement shall commence One Hundred Fifty (150) days from the date of commencement of the construction of the Additional Improvements as set forth in Section 1.01 of this Agreement ("Commencement Date") and shall expire at midnight, Lafayette, Louisiana time on the last day of the month which is One Hundred Twenty (120) months from the first day of the month immediately following the month in which the Commencement Date occurs ("Initial Term"). Further provided, in the event the Commencement Date is on the first day of a month, then the Initial Term shall expire at midnight, Lafayette, Louisiana time on the last day of the month which is One Hundred Twenty (120) months from the Commencement Date.

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Upon commencement of this Agreement, the Lessee and the Lessor shall execute a written memorandum in substantially the form attached hereto as *Schedule F* setting forth the Commencement Date.

Section 4.01 - Rent:

- A. Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a base rent which is calculated as follows ("Base Rent"):

Years 1 through and including 5 of the Initial Term	\$4,125.00 per month
Years 6 through and including 10 of the Initial Term	\$4,500.00 per month

- B. Additional Rent. During the Initial Term, the Lessee shall pay to the Lessor, as additional rent ("Additional Rent"), the following amounts.

1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the Common Area (as hereinafter defined) maintenance charges ("Common Area Maintenance Charges"). The Common Area Maintenance Charge shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as *Schedule C*.
2. Tax and Insurance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property ("Taxes and Insurance Charges"). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping

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Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, licenses fees, or other taxes or fees levied in connection with the Lessor's leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of any insurance obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies.

3. Payment of Additional Rent. The Lessee's Pro Rata Portion of the Common Area Maintenance Charges and the Taxes and Insurance Charges to be paid monthly as Additional Rent shall be one-twelfth of the applicable amounts of said charges multiplied by a number whose numerator is the square footage of the Premises (as set forth in Section 1.01) and whose denominator is the total of number of square feet of rentable floor area within the buildings located in the Boulevard Shopping Center Property.

Prior to the commencement of each calendar year, the Lessor shall provide to the Lessee an estimate of the Common Area Maintenance Charges and the Tax and Insurance Charges for the forthcoming calendar year. In the event the Commencement Date is a date other than the first day of a calendar year, then the Lessor shall provide to the Lessee on the Commencement Date, the estimate of the Common Area Maintenance Charges and the Tax and Insurance Charges for the balance of the calendar year in which the Commencement Date occurs. Beginning with the Commencement Date, and continuing on the first day of each calendar month thereafter, the Lessee shall pay to the Lessor, as Additional Rent, one twelfth of the Lessee's Pro Rata Portion of the Common Area Maintenance Charges and one twelfth of the Lessee's Pro Rate Portion of the Taxes and Insurance Charges as set forth on the estimate provided by the Lessor. The estimate of the Common Area Maintenance Charges for the period beginning with the date of this Agreement and ending December 31, 2000 is \$1.00 per square foot of the Premises annually, payable monthly as provided herein. The estimate of the Taxes and Insurance Charges for the period beginning with the date of this Agreement and ending December 31, 2000 is \$.50 per square foot of the Premises annually, payable monthly as provided herein.

At the end of each calendar year, the Lessor shall furnish to the Lessee a statement showing the actual total Common Area Maintenance Charges and the Taxes and Insurance Charges and the Lessee's Pro Rata Portion of each respective charge for the calendar year just ended. If the amount of the estimated Common Area Maintenance Charges and the Taxes and Insurance

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Charges for any year during the Initial Term are less than the actual Common Area Maintenance Charges and the Taxes and Insurance Charges, then the Lessee shall pay to the Lessor, within seven (7) days of the Lessee's receipt of the Lessor's statement, as Additional Rent, the Lessee's, Pro Rata Portion of the amount by which the actual Common Area Maintenance Charges and the Taxes and Insurance Charges exceed the estimated Common Area Maintenance Charges and the Taxes and Insurance Charges. In the event the estimated payments made by the Lessee are greater than the actual charges, then such excess shall be credited toward the Lessee's next due payment of Additional Rent. In the event the Initial Term of this Agreement expires or this Agreement is otherwise terminated, Lessor shall compute the excess, if any, due to the Lessor to the date the lease expired or was terminated and may add such amount to the amounts due under this Agreement.

Provided however, notwithstanding anything contained herein to the contrary, beginning in the second year of the Initial Term the amount of the estimated or actual Common Area Maintenance Charges for any calendar year thereafter shall not exceed the prior calendar year actual Common Area Maintenance Charges by more than four percent (4%).

- C. Monthly Rental Amount. Beginning on the Commencement Date and extending through December 31, 2000, the Total Monthly Rental Payment shall be calculated as follows:

Base Rent	\$4,125.00
Common Area Maintenance Charges	375.00
Taxes and Insurance Charge	<u>187.50</u>
Total Month Rental Payment	<u>\$4,687.50</u>

- D. Payment of Rent. The monthly payments of the Base Rent and Additional Rent (collectively, the "Total Monthly Rental Payment") shall be due on the first day of each calendar month. Provided however, in the event the Commencement Date is a day other than the first day of a calendar month, then the initial rental payment shall be made on the Commencement Date and the amount of the initial rental payment shall be an amount which shall be calculated by multiplying the Total Monthly Rental Payment by a number whose numerator is the number of days remaining in the month beginning with the Commencement Date and whose denominator is the total number of days in the month in which the Commencement Date occurs.

Except as provided herein, all rental payments are due on the first day of each calendar month. In the event the Lessor does not receive the Total Monthly Rental Payments on

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or before the fifth day of the calendar month, a late fee in the fixed amount of \$100.00 plus a daily charge beginning on the sixth day of the calendar month in the amount of \$25.00 per day shall be charged and shall be due and payable by the Lessee for each late payment.

All rental payments due hereunder shall be made to the Lessor by mailing the same to 101 Arnould Boulevard, Lafayette, Louisiana 70506 or such other place as the Lessor shall designate in writing.

Section 5.01 - Real Property Taxes:

Lessee shall be responsible for and shall pay before delinquency, its Pro Rata Portion of all real property taxes and assessments levied and assessed against the Premises, and shall make such payment in accordance with paragraph 4.01 B hereof.

Section 6.01 - Personal Property Taxes:

Lessee shall be responsible for and shall pay, before delinquency, all taxes, assessments, license fees, and other charges that are levied and assessed against Lessee's personal property installed or located in or on the Premises, and that become payable during the Initial Term or any renewal thereof.

Section 7.01 - Limitations on Use:

Lessee shall not do, bring or keep anything in or about the Premises that will cause the cancellation of any insurance covering the Premises. If the rate of any insurance carried by Lessor is increased, as a result of Lessee's use, Lessee shall reimburse Lessor for the amount of such increase. Lessee shall not permit any activity on the premises which may in law constitute a nuisance, public or private, or which may constitute a violation of any environmental laws, or any other laws, ordinances or regulations.

Section 8.01 - Assignment and Subletting:

Lessee shall not sell, mortgage, transfer, assign or sub-let all or any portion of the Premises without the prior written consent of the Lessor, which consent shall be in the sole discretion of the Lessor. Provided however, the Lessor shall not be obligated to consent to any assignment, transfer or sub-let in the event the proposed transferee's use of the Premises would be in conflict with the provisions of any other lease in the Boulevard Shopping Center Property. Further provided, that in no event shall Lessor's consent to an assignment or subletting be construed as (i) relieving Lessee from the obligation to obtain Lessor's express written consent to any further assignment or subletting or (ii) releasing Lessee from any liability or obligation hereunder whether or not then accrued, and Lessee shall continue to be, fully, jointly and

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severally liable hereunder. The Lessor may sell, mortgage, transfer or assign its interest in this Agreement at any time without the consent of the Lessee.

Section 9.01 - Maintenance, Repairs:

Lessee acknowledges that the Premises are in good order and repair. Lessee shall, at his own expense and at all times, maintain the Premises in good and safe condition, make all necessary repairs and replacements including, but not limited to the heating and air conditioning systems and components thereof serving the Premises, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. Lessee shall be responsible for all repairs required, excepting the roof, exterior walls and structural foundations, which shall be maintained by Lessor. Lessee shall also be responsible for keeping at all times areas immediately adjacent to the Premises, such as sidewalks and parking areas free and clear of trash and other refuse. Lessee shall promptly repair any damage to any part of the building in which the Premises is located in the event such damage is caused by or attributable to the actions or inactions of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, customers, guests, invitees or licensees. Notwithstanding the foregoing, the Lessor shall be responsible for the repair and replacement, if necessary, of the heating and air conditioning ("HVAC") systems servicing the Premises provided that (i) the Lessee shall pay the first \$500.00 for each repair visit and the first \$500.00 toward the replacement cost of the HVAC systems or any component thereof and (ii) the Lessee maintains, at its own expense, for the full term of this lease and any renewal or extensions thereof, a monthly maintenance contract with Butcher Air Conditioning for regular routine maintenance to the HVAC systems and components thereof. Further provided, in the event it is determined by the HVAC maintenance provider the HVAC systems or any component thereof must be replaced and such replacement is made within fifteen (15) days of a repair visit made by such HVAC maintenance provider ("Preceding Repair Visit") (not including a routine maintenance visit pursuant to a monthly maintenance contract), then the amount paid by the Lessee toward the cost of the Preceding Repair Visit shall be credited toward the Lessee's obligation to pay the first \$500.00 toward the replacement cost of the HVAC systems.

Lessee further agrees to maintain the Premises in clean and healthful condition and to comply with all laws, ordinances, orders, rules and regulations (state, federal, municipal and any other agencies or bodies having any jurisdiction thereof) with respect to the use, condition or occupancy of the Premises.

In discharging the responsibilities hereunder, Lessee shall utilize the services of bonded, licensed contractors to perform all maintenance or repair work to the Premises.

Section 10.01 - Alterations:

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Lessee shall not make any improvements or alterations, structural or otherwise, to the Premises without Lessor's written consent, which consent shall be in the sole discretion of the Lessor. In making any improvements or alterations which require the consent of Lessor, Lessee, after obtaining Lessor's consent, shall comply with the following:

- A. The improvements or alterations shall not be commenced until seven (7) days after Lessor has received written notice from Lessee stating the date the alterations are to commence and Lessor has consented to same.
- B. The improvements or alterations shall be in conformance with all applicable local, state or federal laws and regulations.

Lessee shall have the duty, if Lessor so requests in writing, to remove from the Premises before the expiration of the term, or within fifteen (15) days after the expiration of the term, any improvements or alterations Lessee has made to the Premises, so long as the removal will not cause structural damage to the Premises, and Lessee, at its cost, shall promptly restore any damage caused by the removal. Provided however, the foregoing shall not apply to the Additional Improvements constructed by the Lessee in accordance with Section 1.01 hereof.

The Lessee shall not cause or permit any mechanic's liens to be filed against the Premises, and Lessee shall indemnify, hold harmless, and defend the Lessor from and against any and all such liens.

Section 11.01 - Utilities and Janitorial Services:

Lessee shall pay before same becomes delinquent, all utility and service charges for utilities or services furnished to the Premises or used by the Premises or the Lessee, including, without limitation, electricity, gas, water, telephone service and trash collection. Lessee shall be responsible for maintaining the Premises in accordance with the terms hereof and shall be responsible for the payment of any costs or expense with respect to any janitorial services provided to the Premises and Lessee shall be responsible for the trash or refuse disposal services to the trash or refuse generated by or related to the Premises.

Section 12.01 - Signs:

Lessee, at its cost shall have the right to place, construct and maintain an exterior sign on the Premises advertising its business conducted on the Premises. Such sign shall be located on the front exterior wall of the Premises above the front canopy extending from the front wall. Lessor shall have the right to approve such sign prior to placement on the Premises, which approval shall not be unreasonably withheld, and any sign that Lessee has the right to place, construct and maintain shall comply with all applicable laws or regulations including, but not limited to

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the rules and regulations attached hereto as *Schedule D* and the design criteria attached hereto as *Schedule E*.

Lessor acknowledges that the Lessee intends to have the following sign requirements, which once incorporated into the signage plan to be submitted to the Lessor is subject to final approval by the Lessor:

1. Red channel letters comprising the exterior storefront sign that are a minimum of four (4) feet high;
2. Five (5) single tube non flashing interior window signs against Lessee's interior glass storefront.

Lessor further acknowledges that the Lessee signage and storefront elevation are unique to the Lessee and Lessor agrees to be commercially reasonable in reviewing and approving the signage and storefront elevations proposed by the Lessee.

The Lessor agrees to provide to the Lessee space for Lessee to install Lessee's signage on the existing pylon sign of the Boulevard Shopping Center. All costs associated with such sign shall be borne by the Lessee. The size and style of the sign shall be subject to the prior written consent of the Lessor which consent shall not be unreasonably withheld.

Upon termination of the tenancy herein created, Lessee shall remove any sign so placed and repair any damage or injury to the Premises or the exterior thereof caused by such removal, and Lessee shall retain the contractor designated by Lessor to repair the damage caused by such removal. In the event the Lessee does not remove its sign as provided herein, then the Lessor shall have the right to remove the sign or signs and the Lessee shall be responsible for the payment of such removal and such cost or expense shall be considered as rent due hereunder.

Section 13.01 - Access:

Lessor and its authorized representatives shall have the right after 24 hours notice to Lessee, to enter the Premises during Lessee's non peak (times not immediately surrounding normal meal times) business hours and at all other reasonable times with such prior notice for the purpose of:

- A. Determining whether the Premises are in good condition and whether Lessee is complying with its obligations under this Agreement;
- B. Doing any necessary maintenance and to make any restoration or repair to the Premises or the building and other improvements in which the Premises are located that Lessor has the right or obligation to perform.

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- C. Posting "for rent" or "for lease" signs during the last three (3) months of the term of the lease or any renewal thereof.

Lessor shall conduct its activities on the Premises as allowed in this section in a manner that will cause the least possible inconvenience, annoyance, or disturbance to Lessee.

Section 14.01 - Indemnity:

Lessee shall hold Lessor harmless from all damages arising out of any loss, theft, injury or damage to any person or property (as the case may be) occurring in, on, or about the Premises except for damages resulting from the gross negligence or willful conduct of Lessor. Lessee shall be liable to Lessor for damages resulting from the acts or omissions of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, customers, guests, invitees and licensees or of Lessee's, its employee's, officer's, director's, shareholder's, member's, partner's, representative's, agent's, customer's, guest's, invitee's and licensee's negligence, gross negligence or willful conduct. Lessee's obligation under this paragraph to indemnify and hold the Lessor harmless shall be limited to the sum that exceeds the amount of insurance proceeds, if any, received by the Lessor. The indemnitee shall give prompt notice to the indemnitor of any claim to which this indemnity applies.

Section 14.02 - Hazardous Substances:

Lessee warrants and covenants that neither the Lessee, nor its employees, agents, officers, shareholders, partners, members, invitees, guests or customers shall use, deposit, store, transport, locate, bring on to or cause to be brought on to the Premises any Hazardous Substances and further warrants and covenants that neither Lessee nor employees, agents, officers, shareholders, partners, members, invitees, guests or its customers shall release, discharge, spill, dispose, emit or permit the breakage of, Hazardous Substances in, on or under the Premises.

Lessee agrees to indemnify and hold harmless Lessor from any and all claims, damages, fines, judgements, penalties, costs, liabilities, or losses (including, without limitation, any and all sums paid for settlement of claims, attorneys' fees, consultant and expert fees) arising during or after the term of this Agreement or any renewal hereof from or in connection with the presence or suspected presence of Hazardous Substances in or on the Premises, which Hazardous Substances were brought onto the Premises during the term of the lease or any renewal thereof by the Lessee, its agents, officers, representatives, employees, invitees or licensees or become deposited or otherwise become present of the Premises during the term of this Agreement or any renewal thereof. Without limiting of the foregoing, this indemnification shall include any and all costs incurred due to any investigation of the site or any cleanup, removal, or restoration mandated by a federal, state, or local agency or political subdivision.

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For purposes of this section, the term "Hazardous Substances" shall be interpreted broadly to include, but not be limited to, substances designated as hazardous under the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended, 42 U.S.C. 9601, et seq., the Resource Conservation and Recovery Act, 42 U.S.C. 2201, et seq., and any applicable State or federal law or regulation. The term shall also be interpreted to include but not be limited to any substance which after release into the environment and upon exposure, ingestion, inhalation or assimilation, either directly from the environment or directly by ingestion through food chains will or may reasonably be anticipated to cause death, disease, behavior abnormalities, cancer and/or genetic abnormalities, and oil and petroleum based derivatives.

The provisions of this section shall be in addition to any other obligations and liabilities Lessee may have to Lessor at law or in equity and shall survive the termination of this Agreement.

Section 15.01 - Insurance:

Lessee, at its cost, shall maintain comprehensive general liability insurance in a minimum amount of \$1,000,000.00 for each occurrence with a \$2,000,000.00 general aggregate, including \$1,000,000.00 personal and advertising coverage, \$100,000.00 in fire legal liability, and \$5,000.00 in medical payments, insuring against all liability of Lessee arising out of and in connection with Lessee's use or occupancy of the Premises. All such insurance policies shall name the Lessor as an additional insured. At the Commencement Date and on each anniversary date of the Commencement Date, Lessee shall supply to Lessor a certificate that such insurance is in force and the requisite premiums have been paid. Lessee's insurance policies and coverage shall be endorsed to apply on a primary basis. It is further provided that Lessee's insurance policies and coverage shall contain (either directly in the policy or by endorsement) a provision that provides that the Lessor shall be entitled to thirty (30) days prior written notice of cancellation and/or non renewal of such policy or coverage of the Lessee.

Lessor shall maintain fire, casualty and extended coverage insurance on the Boulevard Shopping Center Property and improvements thereon, and upon written request from the Lessee, the Lessor shall supply to Lessee a certificate establishing that such insurance is in force and the requisite premiums have been paid.

Section 16.01 - Waiver of Subrogation:

To the extent that a loss is covered by insurance in force and recovery is made for such loss, the Lessor and Lessee hereby mutually hold harmless and release each other from liability and waive all right of subrogation against each other for any loss or damage to their respective properties. Each party shall cause each insurance policy obtained by it to provide that the insurance company waives all right of recovery by way of subrogation against either party in

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connection with any damage covered by any policy.

Section 17.01 - Damage or Destruction:

If the Premises are so damaged or destroyed by fire, flood, earthquake, the elements, casualty, war, riot, public disorder, acts authorized or unauthorized by the government (including a condemnation proceeding) or any other cause or happening so as to render the Premises unusable for Lessee's operations, as determined by the Lessor acting in good faith and in a commercially reasonable manner, this Agreement shall terminate immediately and any unearned rent paid by Lessee shall be refunded without demand, setoff or reduction as of the date of such destruction or damage. However, there shall be no termination and no refund of unearned rent paid by Lessee, if the damage is caused by the negligence, willful misconduct or gross negligence of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, customers, guests, invitees or licensees.

If the Premises are partially damaged or rendered partially unusable by fire or other casualty, as set forth above, Lessee shall give Lessor written notice of the damage and if repairs are not undertaken by the Lessee within thirty (30) days from the date of such notice to Lessor, Lessor may terminate this Agreement by giving written notice to the Lessee. If Lessor elects not to terminate, this Agreement shall continue in full force and effect and the damages to the Premises shall be repaired by and at the expenses of Lessee. Moreover, until such repair is substantially completed so that full use and occupancy of the Premises by Lessee is possible, the rent shall be apportioned according to the portion of the Premises which remains usable. If such repairs are not completed within one hundred eighty (180) days from the date of written notice of the casualty to Lessor, the Lessor may terminate this Agreement by the giving of written notice to the other party within ten (10) days of the expiration of the 180-day period.

If the building in which the Premises is located, or any portion thereof, provided such damaged portion contains all or a portion of the Premises, is partially damaged or rendered partially unusable by fire or other casualty set forth above, as determined by the Lessor acting in good faith and in a commercially reasonable manner, Lessor shall undertake the repair of the building and the Premises (except if such damage is caused by the negligence, willful misconduct or the gross negligence of the Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, customers, guests, invitees, or licensees, in which case the Lessee shall be responsible for the repair of the building and the Premises) within thirty (30) days from the date of the damages. This Agreement shall continue in full force and effect during the period of the repair and/or until this Agreement is terminated as provided herein. Moreover, until such repair is substantially completed so that full use and occupancy of the Premises by the Lessee is possible, the rent shall be apportioned according to the portion of the Premises remaining usable. If such repairs are not completed within one-hundred eighty (180) days from the date that the repair work is began, either party may terminate this Agreement by giving written notice to the other party within ten (10) days of the

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expiration of the 180 day period.

Section 18.01 - Lessee's Default:

The following events shall be deemed to be events of default by Lessee under this Agreement:

- A. Lessee shall be adjudged bankrupt, or shall file a voluntary petition in bankruptcy or make a general assignment for the benefit of Lessee's creditors, or a receiver be appointed for Lessee's property, or if execution be issued against Lessee's interest in this Agreement, or if Lessee's interest in this Agreement shall by operation of law pass to any person other than Lessee; or
- B. Lessee shall fail to pay the rental due hereunder or any other amount payable to Lessor hereunder; or
- C. Lessee shall fail to perform any requirements of this Agreement, other than a failure described in subsection 18.01(B) above, and such failure shall continue for ten (10) days after written notice of such failure from Lessor delivered to Lessee.

Upon the occurrence of any one or more of such events of default, at the option of Lessor, (i) this Agreement shall cease and terminate immediately and Lessee shall quit and surrender the Premises to Lessor, or (ii) Lessor may pursue any remedy available to Lessor, whether by law or contract, or in equity, including without limitation the repossession of the Premises by Lessor without terminating the Agreement, in which event Lessee shall be liable for all rent payable through the date of repossession, plus rent required to be paid by Lessee during the remainder of the initial term (or, if applicable, the any renewal term), diminished by any sums thereafter received by Lessor through reletting the Premises during said period. If this Agreement shall be terminated by Lessor pursuant to this Section 18.01, Lessor may at any time thereafter resume possession of the Premises by any lawful means and remove Lessee and Lessee's property therefrom. Time is of the essence with respect to all matters described in this Section 18.01.

Section 19.01 - Lessor's Default:

Lessor shall be in default of this Agreement if it fails or refuses to perform any provision of this Agreement that it is obligated to perform if the failure to perform is not cured within thirty (30) days after written notice of the default has been given by Lessee to Lessor. If the default cannot reasonably be cured within thirty (30) days, Lessor shall not be in default of this Agreement if Lessor commences to cure the default within the thirty (30) day period and in good faith continues to cure the default. In the event the Lessor fails to cure a default as provided hereinabove and the continuance of such default results in the interruption of the Lessee's peaceable enjoyment of the Premises, then the Lessee shall be entitled to the abatement of the

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monthly rent payable under this Agreement and the amount of such abatement shall be in the same proportion as the amount of the Premises rendered unusable by Lessor's default is to the totality of the Premises.

Section 20.01 - Surrender of Premises:

Upon termination of this Agreement by lapse of time or otherwise, Lessee shall immediately surrender the Premises in as good condition as they were in at the beginning of the term, ordinary wear and tear or alterations, changes or additions made in compliance with this Agreement, acts of God, or other casualty excepted. In the event the Lessee retains possession of the Premises after the termination date of this Agreement, then the Lessee shall pay to the Lessor a monthly rental amount equal to 125% of the monthly rental amount set forth in Section 4.01 hereof for each month or part thereof that the Lessee retains possession of the Premises after the termination date of this Agreement.

Section 21.01 - Notice:

Any notice, demand, request, or consent that either party describes or is required to be given hereunder shall be in writing and shall be deemed sufficient if sent by United States first class mail, return receipt requested:

LESSOR: BELLE REALTY OF LAFAYETTE, L.L.C.
101 Arnould Boulevard
Lafayette, Louisiana 70506

with copy to:

Richard L. Becker, Esq.
BECKER AND ASSOCIATES
910 Harding Street
Lafayette, Louisiana 70503

LESSEE: Mr. Joseph V. Tortorice, Jr.
DELI MANAGEMENT, INC.
2400 Broadway
Beaumont, Texas 77702

with copy to:

Stephen J. Simmons, Esq.
3845 FM 1960 West, Suite 250
Houston, Texas 77068

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Either party may notify the other in writing of any different address for notice purposes.

All such notices shall be deemed given on the date of receipt at the applicable address as evidenced by the return receipt.

Section 22.01 - Common Area, Non-Exclusive Cross Use Easement and Parking:

Lessor shall have the sole and exclusive control of the Common Area as well as the right to make changes to the Common Area. However, notwithstanding the foregoing, Lessor shall not be responsible for any harm or damage to the Lessee, its offices, employees, shareholders, agents or invitees as a result of the use by any person or persons of the Common Area. Lessor's rights with respect to the Common Area shall include, but not be limited to, the right to (i) restrict the use of the Common Area by unauthorized persons (ii) utilize from time to time any portion of the Common Area for promotional and related matters, (iii) temporarily close any portion of the Common Area for repairs, renovations, alterations or otherwise (iv) limit the activities or uses of the Common Area by the Lessee, its agents, invitees, and employees.

Each lessee of the Boulevard Shopping Center Property shall have a non exclusive right to use and enjoy the Common Area, subject to the provisions contained in this Agreement. Provided however, in no event shall there be any overnight parking or storage of any boats, automobiles, trucks, recreational vehicles, campers or trucks larger than those having six wheels on the Boulevard Shopping Center Property. In addition, no lessee shall perform or permit to be performed any maintenance on any vehicles in the Common Area. All delivery vehicles owned and operated by any lessee in connection with its business located in the Boulevard Shopping Center shall be parked at all times, during business and non business hours in the rear of the lessee's leased premises.

Section 23.01 - Interpretation:

This Agreement shall be construed and interpreted in accordance with the laws of the State of Louisiana.

Section 24.01 - Waiver:

No delay or omission by either party in exercising any right occurring upon any noncompliance or default by the other party with respect to any of the terms hereof shall impair any such or be construed to be waiver thereof. A waiver by either party of any of the covenants and agreements to be performed by the other shall not be construed to be a waiver of any succeeding breach thereof or of any other covenants or agreements herein contained.

Section 25.01 - Heirs and Successors:

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Subject to the provisions hereof pertaining to assignment and subletting, the covenants and agreements of this Agreement shall be binding upon the heirs, legal representatives, successors and assigns of the parties hereto.

Section 26.01 - Integrated Agreement; Modification:

This Agreement contains all of the agreements of the parties and cannot be amended or modified except by a written agreement signed by the Lessor and the Lessee.

Section 27.01 - Recordation:

This Agreement shall not be recorded, except that if either party requests the other party to do so, the parties shall execute a memorandum of lease in recordable form.

Section 28.01 - Captions:

The captions used in this Agreement shall have no effect of its interpretation.

Section 29.01 - Severability:

The unenforceability, invalidity, or illegality of any provision of this Agreement shall not render the other provisions unenforceable, invalid or illegal.

Section 30.01 - Attorney's Costs:

If by reason of the occurrence of an event of default, the Lessor or the Lessee shall bring suit to recover any rent or other payment due hereunder, or for breach of any provision of this Agreement or to recover possession of the Premises, or if Lessee shall bring any action for any relief against Lessor, declaratory or otherwise, arising out of this Agreement, the prevailing party shall have and recover against the other party in addition to the costs allowed by law, such sum as the court may judge to be a reasonable attorney's fee.

Section 31.01 - Option to Renew:

Initial Term ends 10/31/2010

Provided that Lessee is not in default in the performance of this Agreement, Lessee shall have the option to renew the lease for an additional term of One Hundred Twenty (120) months commencing on the next day following the expiration of the Initial Term. All of the terms and conditions of this Agreement shall apply during the renewal term except that the Base Rent shall be calculated as follows:

Years 11 through and including 15	\$4,875.00 per month
Years 16 through and including 20	\$5,250.00 per month

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The option to renew shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the Initial Term. If notice is not given in the manner provided herein and within the time specified, this option to renew shall terminate.

Section 32.01 – Subordination:

- A. This Agreement is subject and subordinate to any mortgage which now or hereafter encumbers or affects the building of which the Premises form a part and/or the leasehold interest or fee simple interest of the Lessor in the land upon which the building is situated, and to all renewals, modifications, consolidations, replacements and extensions thereof. This clause shall be self-operative and no further instrument of subordination need be required by any mortgagee of Lessor. In confirmation of such subordination, however, Lessee shall, at Lessor's request, promptly execute any appropriate certificate or instrument that Lessor may request. Lessee hereby constitutes and appoints Lessor as Lessee's attorney in fact to execute any such certificate or instrument for and on behalf of Lessee. In the event of the enforcement by the holder of any such instrument of the remedies provided for by law or by such mortgage, Lessee will, upon request of any person or party succeeding to the interest of Lessor as a result of such enforcement, automatically become the lessee of such successor in interest without change in the terms or other provisions of this Agreement. Upon request by such successor in interest, Lessee shall execute and deliver an instrument or instruments confirming the attornment herein provided for. Further provided, that if any person or entity shall succeed to all or part of Lessors interest in the Premises, whether by purchase, foreclosure or deed in lieu of foreclosure, power of sale, termination of lease or otherwise such successor in interest to the Lessor shall not affect, terminate or disturb Lessee's right to quiet enjoyment and possession of the Premises under the terms of this Lease in the exercise of any rights of such successor in interest so long as Lessee is not then in default or becomes in default under the terms, covenants and conditions of this Lease.
- B. At Lessor's request, Lessee will execute either an estoppel certificate or a three-party agreement certifying such facts and agreeing to such notice provisions and other matters as may reasonably be required.

Section 33.01 – Lien For Payment of Rent:

In consideration of mutual benefits arising by virtue of this Agreement, Lessee does hereby mortgage unto Lessor all property of Lessee, including Lessee's inventory, fixtures, furniture and equipment now or hereafter placed in or upon the Premises (except such part of property or merchandise as may be exchanged, replaced or sold from time to time in the ordinary course of operations or trade), and such property is hereby subjected to a lien in favor of Lessor and shall

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be and remain subject to such lien of Lessor herein. Said lien shall be in addition to and cumulative of the Lessor's lien provided by law. Notwithstanding the foregoing, the lien created in this paragraph shall be subordinate to any lien or mortgage granted by Lessee to any bona fide third party seller of property or equipment located on the Premises or to any bona fide third party lender who lends all or a portion of the purchase money for any property or equipment placed on the Premises by Lessee.

Section 34.01 – Intentionally Omitted:

Section 35.01 – Rules and Regulation:

The Lessee agrees that during the initial term of this Agreement and any renewal thereof, to full abide by and comply with the Rules and Regulations of the Boulevard Shopping Center attached hereto as *Schedule D*, as the same may be amended from time to time by the Lessor.

Section 36.01 – Design Criteria For Lessee Signs:

The Lessee agrees that any sign placed on or otherwise affixed to the Premises or the Shopping Center advertising the Lessee's business shall be in strict accordance with this Agreement and *Schedule E* attached hereto.

Section 37.01 – Intentionally Omitted:

Section 38.01 – Refrigeration Unit:

During the term of this Lease and any extensions or renewals thereof, the Lessee shall have the right, at its sole cost and expense, to locate a refrigeration unit in the rear extension area of the Premises with the area bounded by the side walls of the Premises. Further, such refrigeration unit shall be located and used by the Lessee in compliance with all local ordinances and regulations. The Lessee shall remove such refrigeration unit upon the expiration or termination of this Lease.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]

Lessor's Initials

Lessee's Initials

IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year first above.

WITNESSES:

Linda G. Landry
Printed Name: Linda G. Landry

Jennifer Dirksen
Printed Name: Jennifer Dirksen

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla IV
Edward E. Abdalla, IV
Managing Member

[Signature]
Notary Public

WITNESSES:

Lisa Robichau
Printed Name: LISA Robichau

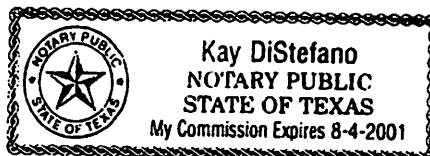
Willa White
Printed Name: Willa White

LESSEE:

DELI MANAGEMENT, INC., a
Texas corporation

By: [Signature]
Printed Name: Joseph J. [unclear], Jr.
Printed Title: President

[Signature]
Notary Public



Lessor's Initials E.E.A. IV
Lessee's Initials [Signature]

SCHEDULE A
BOULEVARD SHOPPING CENTER PROPERTY PLAT
SHOWING PREMISES LEASED

Lessor's Initials E. E. H. H.
Lessee's Initials MS



SCHEDULE B

BOULEVARD SHOPPING CENTER PROPERTY

LESSOR'S CONSTRUCTION OBLIGATION

[For purposes of this Schedule, "Landlord" shall refer to and be the Lessor and "Tenant" shall refer to and be the Lessee"]

A. STRUCTURE

Frame, etc - The structural frame, columns, beams, floor and roof slabs shall be constructed with incombustible and/or wood framing, and the floor and roof slabs shall be designed to carry live loads in accordance with the governing building codes. Roofs will be insulated roof deck construction. Exterior walls above grade will be concrete of any loads are supplied to the roof or structural areas of the building which, in the opinion of the Landlord shall be considered excessive, any costs for handling these structural changes shall be borne by the Landlord.

Store Front - Store front shall be provided by Landlord; Tenant shall provide storefront design to be approved by Landlord's architect. The cost of the design shall be paid by Landlord.

B. INTERIOR FINISH

1. Floors – All floors will be concrete. The finished slab will have a burnish finish, colored concrete, saw cut, grouted, sealed and will be poured after Tenant's rough-in-installation of plumbing and electrical. To ensure that the rough-in installation of the utility systems by the Lessee are located in the correct places within the concrete slab within the Premises, Lessee or an authorized representative of Lessee shall be present at such time that the Lessor pours the concrete slab. The Lessee shall be solely responsible for the location of the utility systems within the concrete slab as poured.
2. Ceilings – All ceilings will be exposed bar joists.
3. Walls – Walls shall be delivered with demising studs and sheet rock.

C. PARKING AREAS AND WALKS

1. Surface – Parking areas will be concrete or asphalt concrete over crushed rock

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base on grade as Landlord's option. Walks and malls will be surfaced with concrete, stone, brick, tile or any other suitable materials as specified by Landlord's architect.

2. Lighting – parking areas, walks and malls will be lighted; the average intensity of the surface of the parking area will be one foot (1 ft.) candle.

D. ELECTRICAL WORK

1. Public and Service Areas – Electrical wiring, electrical fixtures in common service areas and public areas will be provided by Landlord.
2. Electrical Service to Leased Space – Landlord will bring from exterior disconnect panel and meter can base a 120/208V, 3 Phase, 4 Wire 600 amp service to Tenant's main panel within Tenant's lease space for use by Tenant. Tenant will supply and install sub meter and all wiring within Tenant's lease space.

E. UTILITIES

1. Water, Gas, Sanitary Sewer, Electricity – A normal four inch (4") waste – line, gas lines, electrical lines (as referred to above) and water line shall be brought to the Leased premises. Landlord shall also provide a two inch (2") potable water line tap (minimum 45 PSI pressure) and will provide gas (650,000 BTU) to the Leased premises.
2. All Interior sub meters to be Tenant's expenses.

F. MISCELLANEOUS

1. Rear service and side exit doors are to be installed at Landlord's expense at the location to be determined by Landlord and Tenant.

G. SPRINKLER SYSTEMS

1. Sprinkler systems if required by code.

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SCHEDULE B-1

ADDITIONAL IMPROVEMENTS

[For purposes of this Schedule, "Landlord" shall refer to and be the Lessor and "Tenant" shall refer to and be the Lessee"]

A. ITEMS TO BE DONE BY TENANT:

1. Ceiling – A suspended grid system and acoustical tiles, or another ceiling system, shall be installed by Tenant upon approval by Landlord.
2. Walls – All walls shall be finished with sheet rock anchored, taped and sanded, and covered appropriately upon approval by Landlord.
3. Restrooms – Restrooms in compliance with city code, shall be installed by Tenant.
4. Electrical Service – All interior main and sub-panels electrical outlets, conduit, etc. shall be installed by Tenant upon approval by Landlord.
5. Telephone wiring, devices and installation and service costs.
6. Inter-com, radio and TV conduit, devices and wiring.
7. Light covers and other ceilings not standard to the project.
8. Fire protection and detection devices, other than Landlord's sprinkler system.
9. Store fixtures, furnishings, display devices and special column treatments.
10. Display window platforms, floors, backs and ceilings, interior and special rooms.
11. Complete plans showing all details of interior design, electrical and mechanical items which affect Landlord's work, if required by Landlord in order to prepare preliminary plans, including special venting or air handling equipment necessary for tenant's occupancy and use.
12. All interior walls within the Leased Premises.

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13. All signs in or on the Leased Premises or store front (including a canopy illuminated blade sign) including construction, furnishings, and installation thereof. No sign shall be erected without prior written approval of the Landlord or Landlord's architect.
14. Installation of heating and air conditioning systems.

B. CONSTRUCTION

1. All work undertaken by Tenant shall be at Tenant's expense and shall not damage the building or any part thereof, design and details shall conform with the standards of the project and shall be approved by Landlord's architect.
2. Work undertaken by Tenant during general construction shall be handled in the following manner.
 - a) Work attached to the structure such as additional plumbing, electrical work, plastering, terrazzo, etc., may be handled in any of the following ways:
 - i) Awarded by Tenant to its own Contractor, who shall have been approved by Landlord's architects.
 - ii) Awarded to the Landlord's contractor through the use of unit prices which have been established for this type of work by previous building.
 - b) Store furniture, fixtures, painting, floor covering, etc., may be let to any contractor that has been approved by Landlord or Landlord's architect. Tenant shall allow Contractors for his category of work who are already on the site, to bid on their work.

C. PROCEDURE

1. Tenant shall secure Landlord's approval of Tenant's work, including designs, plans and specifications, permits, licenses and contractors to be used in performing the same which shall not be reasonably withheld. All approvals by Landlord or Landlord's Architect must be in writing and oral approvals shall be of no force or effect. All electrical and other utility systems are of standard design and are not adapted to Tenant's particular space layout. It is Tenant's sole responsibility to determine the suitability of such, systems, and to redesign

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the same if Tenant's space layout so required, and neither Landlord nor its Architect shall have any responsibility or connection therewith. All Tenant's work with respect to water, electrical and telephone construction or installation shall also be subject to approval by the utility company furnishing the service.

2. All work by Landlord and Tenant shall comply with all applicable statutes, ordinances, regulations and codes and with the recommendation of Landlord's hazard insurance carrier, and be performed in a good and workmanlike manner with materials of good quality.
3. Prior to commencing Tenant's work, Tenant shall place a temporary storefront on the Leased Premises, which temporary storefront shall be approved by Landlord and shall be at Landlord's expense if Landlord requires such. Further, Tenant and all its construction worker's shall enter the Leased Premises from the back of the Leased Premises and shall not park their cars, trucks and equipment at the front of the Leased Premises. In addition, Tenant agrees to place all dumpsters and trash containers in a location approved by Landlord.

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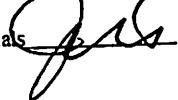
Lessee's Initials



SCHEDULE C

BOULEVARD SHOPPING CENTER PROPERTY

SITE PLAN SHOWING COMMON AREA

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Lessee's Initials 

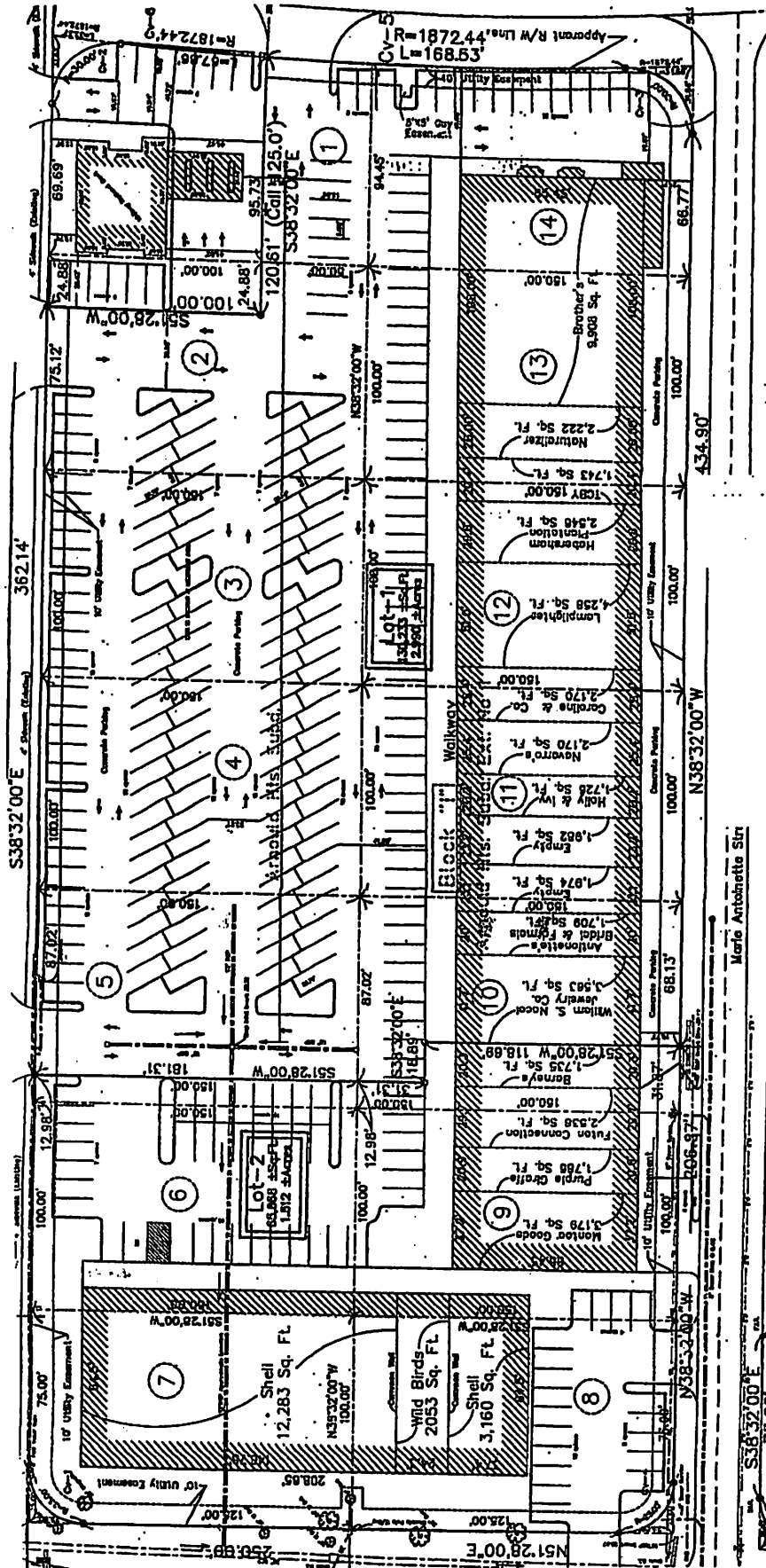


Exhibit "C"
 Common Area

J. E. R. IV

SCHEDULE D

THE BOULEVARD SHOPPING CENTER PROPERTY

RULES AND REGULATIONS

All loading and unloading of goods shall be done only at such times, in the areas, and through the entrances, designated for such purposes by Lessor. The Lessor shall, upon execution of this Lease provide to Lessee the times and areas designed by Lessor for loading and unloading of goods. The Lessor agrees to be reasonable in accommodating Lessee with respect to such designations.

The delivery or shipping of merchandise, supplies, and fixtures to and from the Premises shall be subject to such rules and regulations which in the sole judgment of Lessor are necessary for the proper operation of the Premises or the Boulevard Shopping Center (the "Shopping Center"). The Lessor agrees to be reasonable in accommodating Lessee with respect to such rules and regulations.

All garbage and refuse shall be kept in the kind of container or receptacle specified by Lessor, and shall be placed in the area outside of the Premises prepared for collection in the manner and at the times and places specified by Lessor, which receptacle or containers shall be no more than 100 feet from the Premises.

No radio or television or other similar device shall be installed without first obtaining, in each instance, Lessor's prior consent in writing. No aerial or antenna of any kind shall be erected on the roof or exterior walls of the Premises, the building in which the Premises is located or on the grounds of the Shopping Center, without, in each instance, the prior written consent of the Lessor. Any aerial or antenna so installed without such written consent shall be subject to removal by the Lessor without notice at any time.

No loud speakers, televisions, phonographs, radios, or other devices shall be used in a manner so as to be heard or seen outside of the Premises without the prior written consent of Lessor.

If the Premises are equipped with heating facilities separate from those in the remainder of the Shopping Center, Lessee, during winter months shall keep the Premises heated at a temperature sufficient to prevent freezing of water in pipes and fixtures located within the Premises.

The exterior areas immediately adjoining the Premises shall be kept clean and free from snow, ice, dirt, trash, refuse and rubbish by Lessee to the satisfaction of Lessor, and Lessee shall not place or permit any obstruction or merchandise in such areas.

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The plumbing facilities within the Premises shall not be used for any other purpose than that for which they are designed, and no foreign substance of any kind shall be thrown therein, and the expense of any breakage, stoppage, or damage resulting from a violation of this provision shall be borne by Lessee.

Lessee shall use, at Lessee's cost, a qualified pest extermination contractor, whose services shall be scheduled so as not to reasonably interfere with the operation of the Shopping Center.

Lessee shall not burn any trash or garbage of any kind in or about the Premises, the Shopping Center, or within one mile of the outside property lines of the Shopping Center.

Lessee and Lessee's employees shall park their cars only in those parking areas designated for that purpose by Lessor.

Lessee shall not make noises, cause disturbances, or create odors, which may be reasonably offensive to other tenants of the Shopping Center or their officers, employees, agents, servants, customers or invitees.

Lessee shall not place any type or kind of electrical power extension cord or light fixture outside of the Premises. The Lessee shall use only UL approved, ground faulted power strips to facilitate electrical power sources within the Premises.

Lessee shall not, without the prior written consent of the Lessor, hang or cause to be hung, any banner, sign, display or any other items of any kind outside of the Premises (including the lattice which is part of the building in which the Premises is located).

Lessee shall not, without the prior written consent of the Lessor, stand, erect, construct or otherwise place any display or any other thing of any kind whatsoever in front of the Premises.

Lessee's retail business operation located within the Premises shall be open for business a minimum of six (6) days per each calendar week, Monday through and including Saturday. In addition, such retail business operation shall be open during those days at least from 10:00 a.m. each day to 6:00 p.m. each day. Nothing contained herein shall prevent the Lessee from opening for business on Sunday of each calendar week. Lessee shall use its best commercial efforts to cause the retail business operation located within the Premises to be open for business on Sundays between Thanksgiving Day and Christmas Day each calendar year from the hours of at least 12:00 p.m. to 6:00 p.m. In the event the Lessee's business operations do not, for any reason, remain open for retail business as set forth herein, the Lessee shall be subject to a fine by the Lessor in any amount not to exceed \$100.00 for each occurrence. Further provided, in the event of five (5) or more such occurrence within any twelve (12) month period, the Lessor shall have the right, in addition to all other remedies contained herein to terminate this Agreement. Notwithstanding anything contained herein to the contrary, the Lessee shall not be

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obligated to be open for business on the following holidays: New Years Day, Mardi Gras Day, Easter Sunday, Thanksgiving Day and Christmas Day.

In the event the Lessee displays any clock or other time keeping device on the Premises which is visible from the exterior, the same shall be maintained in a manner to display the accurate time at all times, including the adjustment of such time to reflect daylight savings time and standard time and to compensate for any power outages which may have affected such clock or time keeping device.

In the event the Lessee displays or otherwise employs a sign which is lighted by electrical current or otherwise, then the Lessee shall ensure that such signs are lighted as of dusk each day (adjusted for seasonal changes in such time) and remain lighted until midnight each day.

Lessee shall cause its name and address to be placed on the rear door of the Premises and shall, at its own expense, provide for security lighting to be placed on or about the rear door, which security lighting shall remain illuminated all night, every night.

Lessee shall not, nor shall Lessee permit any of its employees, contractors, customers or invitees to, solicit business or otherwise from any person or persons located on the Shopping Center property. Further, Lessee shall not respond or otherwise encourage or facilitate the solicitation by any outside person or persons on the Shopping Center property.

Lessor's Initials E. G. Little
Lessee's Initials JAG

Schedule E

JASON'S DELI SIGN SPECIFICATIONS

SIZE:

"J" should be 60" in height with the other letters corresponding in height as per logo.

COLORS:

Letter RETURNS to be prefinished BLACK
FACES to be #2793 translucent WHITE
TRIMCAP to be BLACK
NEON color to be WHITE
RACEWAYS or WIREWAYS painted to match building
Metal interior of letters to be painted WHITE for reflection.

MATERIALS & CONSTRUCTION:

RETURNS to be .040 Aluminum, 5" deep.
BACKS to be .050 Aluminum
FACES to be 3/16" flat Plexiglas
TRIMCAP to be 1" acrylic Jewelite
NEON - Letters are internally lit with three (3) rows of 15mm glass powered by 30ma transformers.

MOUNTING METHOD OF LETTERS:

RACEWAYS - Letters mounted to 7" by 7" by 20 gauge primed metal beams that contain all wiring and transformers. Each word to be on a separate raceway. Raceways are to be centered vertically behind letters.

STOREFRONTS:

Two (2) storefronts are allowed the above signage (East and South storefronts).

NEONS:

Single tube, non-flashing red and green neon signs are allowed to be placed and professionally attached to the interior storefront glass as follows:

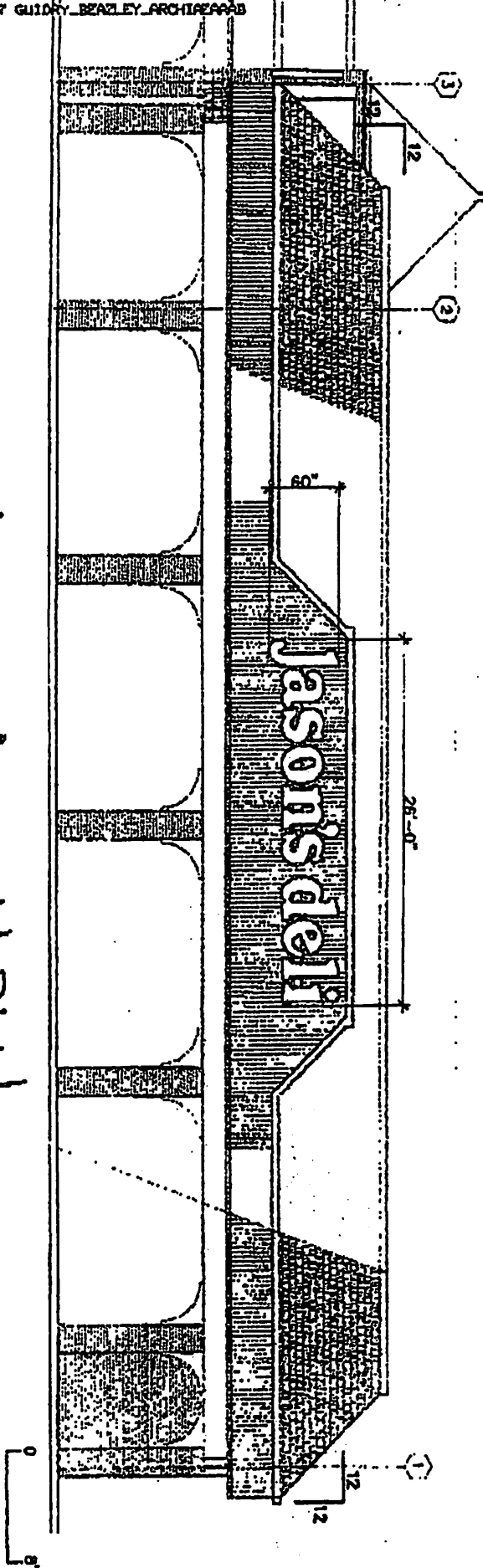
1. Delicatessen
2. We Deliver
3. Open
4. Catering
5. Soup & Salad

Uppercase letters are 15" in height and lower case letters are 12"

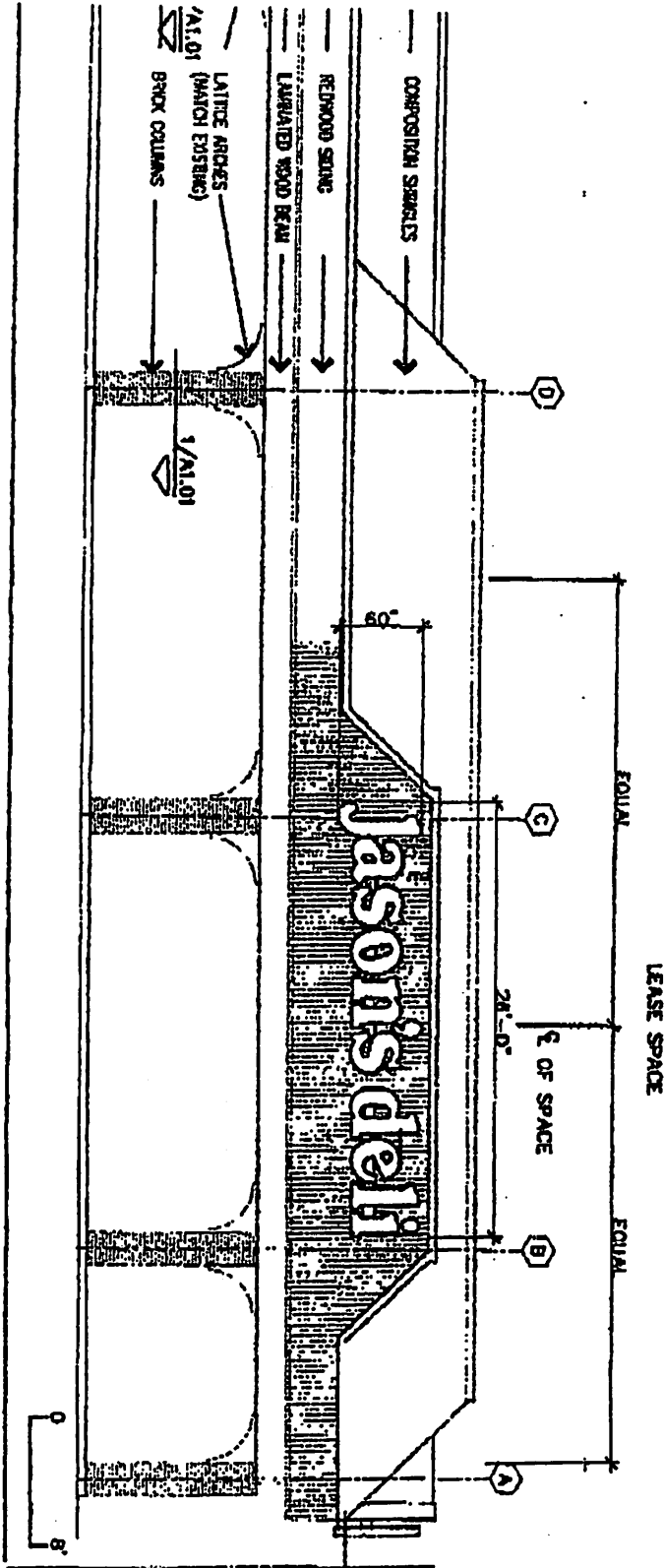
INSTALLATION and all wiring to meet standards set forth by The National Electric Code.
Mounting hardware to be non-corrosive and not visible.

A handwritten signature in black ink, appearing to read "E. E. Smith", is located in the bottom right corner of the document.

Arnould Blvd.



E. E. R. #



Johnston St.

E. E. A. #

08/27 16:45 1900

FROM:

3372325684

TO: 1234567

PAGE: 2

Jun-27-00 01:30P Saturn Companies

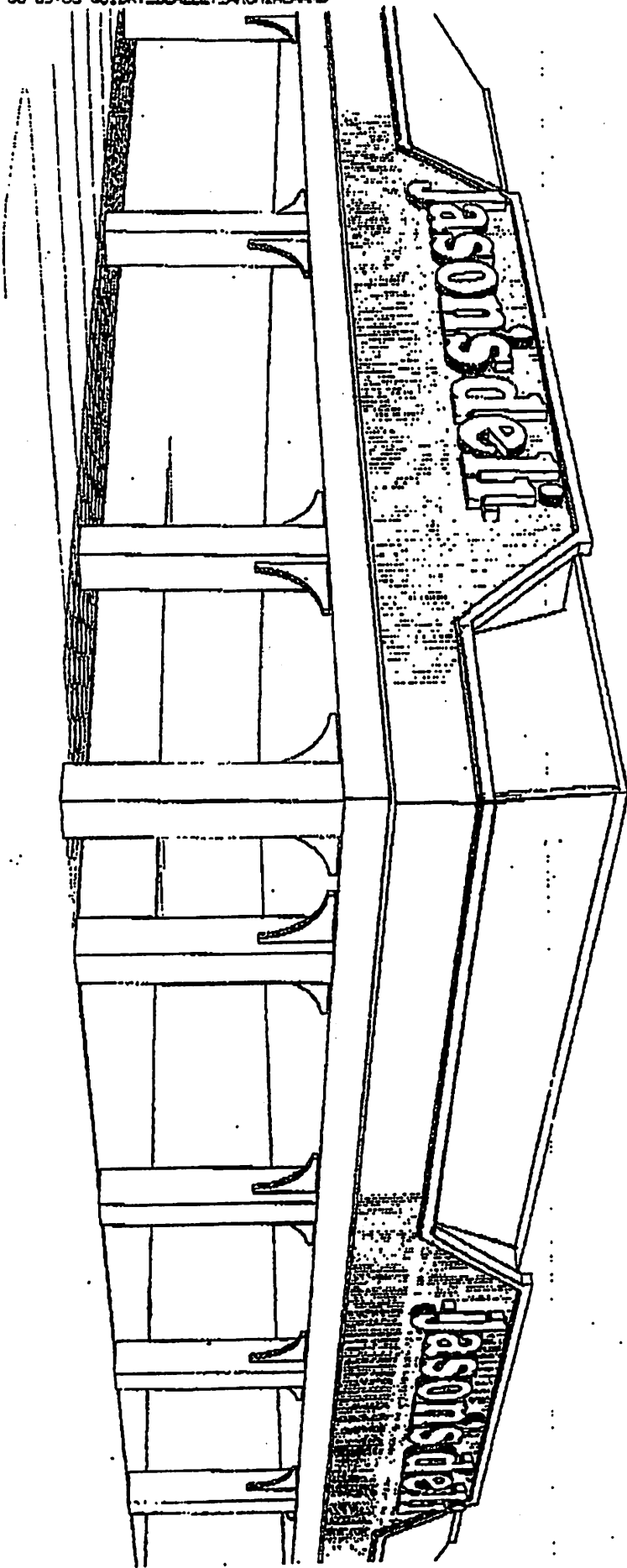
3372325684

P.02

JUN 26 '00 09:53 GUIDRY, BEAZLEY ARCHITECTS

P.173

WITH FULL LENGTH REPLACEMENT BOARDS



E. L. R. III

Schedule E

JASON'S DELI SIGN SPECIFICATIONS**SIZE:**

"J" should be 60" in height with the other letters corresponding in height as per logo.

COLORS:

Letter RETURNS to be prefinished BLACK
 FACES to be #2733 translucent WHITE
 TRIMCAP to be BLACK
 NEON color to be VIO-ITE
 RACEWAYS or WIREWAYS painted to match building
 Metal interior of letters to be painted WHITE for reflection.

MATERIALS & CONSTRUCTION:

RETURNS to be .040 Aluminum, 5" deep.
 BACKS to be .030 Aluminum
 FACES to be 3/16" flat Plexiglas
 TRIMCAP to be 1" acrylic Jewellite
 NEON - Letters are internally lit with three (3) rows of 15mm glass powered by 30ma transformers.

MOUNTING METHOD OF LETTERS:

RACEWAYS - Letters mounted to 7" by 7" by 20 gauge primed metal beams that contain all wiring and transformers. Each word to be on a separate raceway. Raceways are to be centered vertically behind letters.

STOREFRONTS:

Two (2) storefronts are allowed the above signage (East and South storefronts).

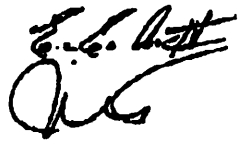
NEONS:

Single tube, non-flashing red and green neon signs are allowed to be placed and professionally attached to the interior storefront glass as follows:

1. Dollhouse
2. We Deliver
3. Open
4. Catering
5. Soup & Salad

Uppercase letters are 15" in height and lower case letters are 12"

INSTALLATION and all wiring to meet standards set forth by The National Electric Code.
 Mounting hardware to be non-corrosive and not visible.



00/27 10:40 1990

FROM:

7-5-0 13:21

RICHARD L BECKER

408 6361906

3372325864

TO: 1234567

PAGE: 4

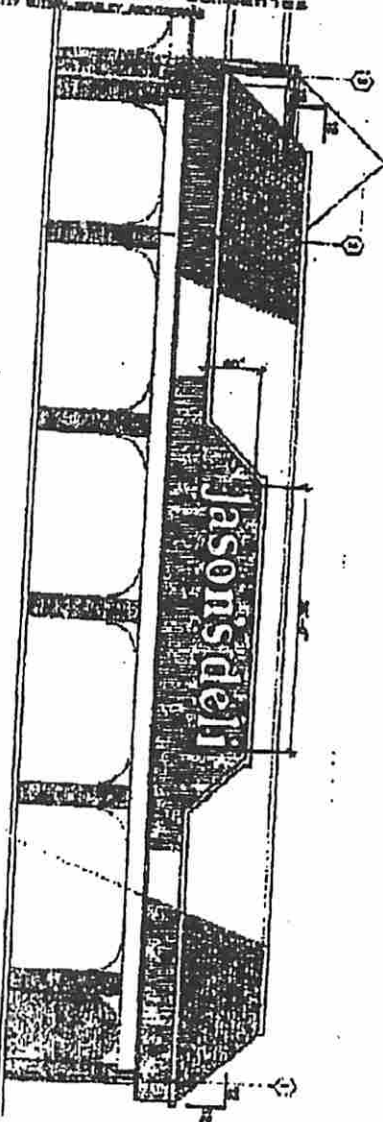
Jun-27-00 01:30P Saturn Companies

401 55 00 14117 50111 50111 50111

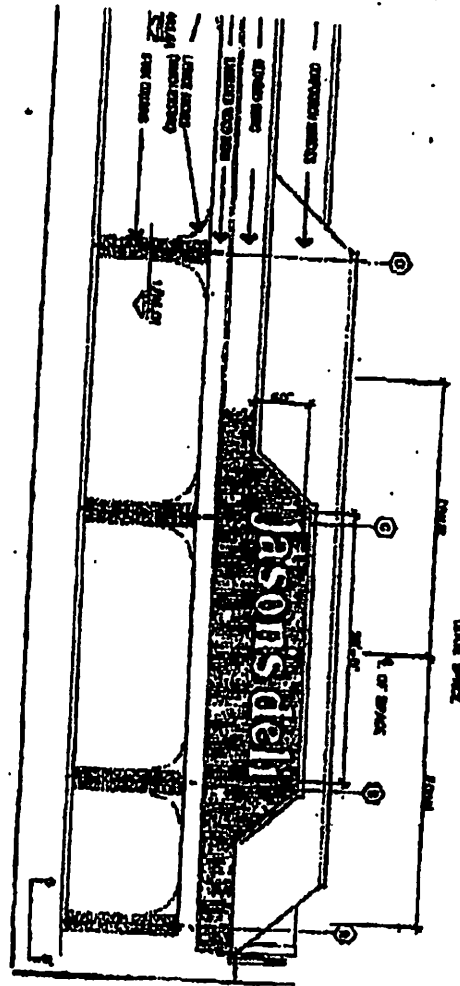
3372325864

P.O.

Arnould Blvd.



[Handwritten signature]
E. L. H. #



Johnston St.

[Handwritten signature]
 E. L. H.

06/27 16:45 1800 FROM:

337232884

TO: 1284587

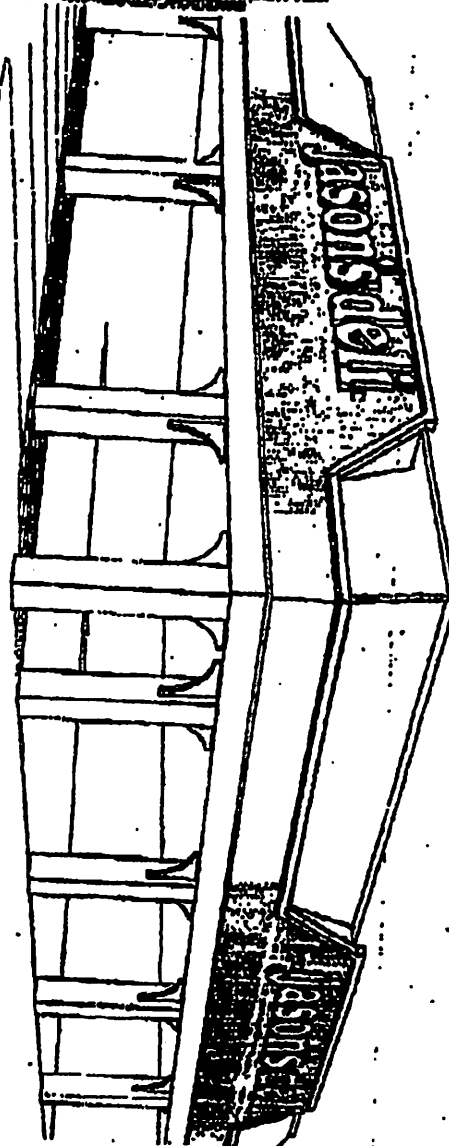
PAGE: 2

Jun-27-00 01:30Z RETURN COMPANY 1000
JUN 27 01 30Z RETURN COMPANY 1000

337232884

P.O.

Wing Tail Length Receptor Box



RG

E. G. H. H.

SCHEDULE F

COMMENCEMENT DATE MEMORANDUM

This Commencement Date Memorandum ("Memorandum") is made this ____ day of _____, 2000
by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "Lessor"); and

DELI MANAGEMENT, INC., a Texas corporation whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (hereinafter referred to as "Lessee").

1. The Lessee and the Lessor are parties to that certain Lease Agreement entered into as of the ____ day of June 2000 (the "Lease Agreement").
2. The Lease Agreement provided that the term of the lease shall commence upon the completion of certain construction obligations (the "Commencement Date") and that the Lessor and the Lessee shall execute a written memorandum evidencing the actual Commencement Date.
3. The undersigned Lessor and Lessee hereby acknowledge and confirm that the Commencement Date as defined in Section 3.01 of the Lease Agreement is the ____ day of _____, 2000.

THUS DONE AND SIGNED as of the date first above written.

LESSOR:

BELLE REALTY OF LAFAYETTE, L.L.C.,
a Louisiana limited liability company

By: _____
Edward E. Abdalla, IV
Managing Member

LESSEE:

DELI MANAGEMENT, INC., a Texas corporation

By: _____
Printed Name: _____
Printed Title: _____

Lessor's Initials

Lessee's Initials

SCHEDULE G
DESIGN CRITERIA FOR LESSEE SIGNS
AT THE BOULEVARD SHOPPING CENTER

Lessee's sign or signs shall be store identity signs only, and must be placed on the exterior façade of the canopy which covers the sidewalk in front of the Premises (the "Canopy") in the area designated for signs. No signs shall be suspended from the underside of the façade, but may, subject to the approval of the Lessor, be suspended from the underside of the Canopy.

No freestanding signs shall be permitted.

Lessee's signage shall be manufactured by Universal Sign Company and be Individual Channel Illuminated letters, interior light with single 12mm white neon, five and one-half (5 ½") inch deep Channel letters using .040 aluminum with bronze factory baked enamel finish, plastic facing, using 1" Jewelite gold Trim cap.

Letter style may be of the Lessee's choice, subject to review and written approval by Lessor prior to the sign order being placed with the company.

Lessee's sign shall be limited to letters not to exceed twenty-six (26") inches in height. The maximum length of Lessee's lettering may be 80% of the frontage of the Premises, but no letters shall be nearer than two (2') feet to either corner of the Premises. No exposed neon light shall be used on signs without Lessor's prior written approval.

All neon on interior of letters to be UL48 specifications, PK housing, electrical conduit, etc. Letters to be mounted on a raceway, shall not exceed store identity name with cabinet being a maximum eight (8") inches width and eight (8") inches depth (transformers mounted in raceway); the raceway shall be painted the same color of the building fascia to which it will be attached.

Lessee's lettering on doors, windows or show windows may not be illuminated and may not exceed six (6") inches in height.

Lessee's shall not employ paper signs to be applied to the interior or exterior faces of the store front glass or other material. Lessee shall not employ any flashing action, moving action or audible signs.

Lessee's sign shall be in accordance with ordinances of governing bodies having jurisdiction over the Shopping Center, the Premises and/or the Lessee.

J. E. L. #
[Signature]

Lessee's signs shall operate in a manner which automatically turns the sign(s) on at dusk and turns the sign(s) off at 12:00 midnight each day.

Lessor's approval of Lessee's plans and specifications for space improvement work shall not be deemed to constitute approval by Lessor of any of Lessee's sign work. Lessee shall submit separate drawings and specifications, in quadruplicate, including colors, for all it's proposed sign work. The drawings shall clearly show the location of all signs on the storefront elevation drawing, graphic, color and construction and attachment details. Within a reasonable time after the receipt of such drawings and specifications, Lessor shall return one set thereof to Lessee with its approval and/or any suggested modifications from Lessor. Lessee shall be deemed to have agreed to and approved all suggested modifications.

All Lessee signs must be fully approved in writing by Lessor prior to installation.

In the event that Lessee places or otherwise erects a sign or signs in any place other than within the Premises without the prior written approval of the Lessor, the Lessor shall have the right to remove such sign or signs and the costs or removal shall be the responsibility of the Lessee. The Lessee shall reimburse the Lessor for such costs within five (5) days of receipt of an invoice from the Lessor for the costs of removal of the sign or signs. The cost of such removal shall be considered rent due hereunder and the non-payment by the Lessee shall be considered non-payment of rent and entitle the Lessor the exercise its rights for non-payment of rent.

E. E. A. H.
[Signature]

SCHEDULE H

"NO BUILD AREA"

Lessor's Initials E. E. A. #
Lessee's Initials JS

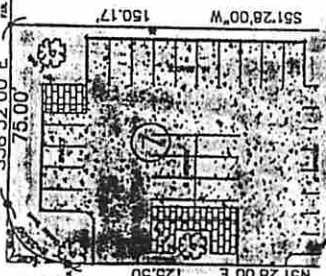
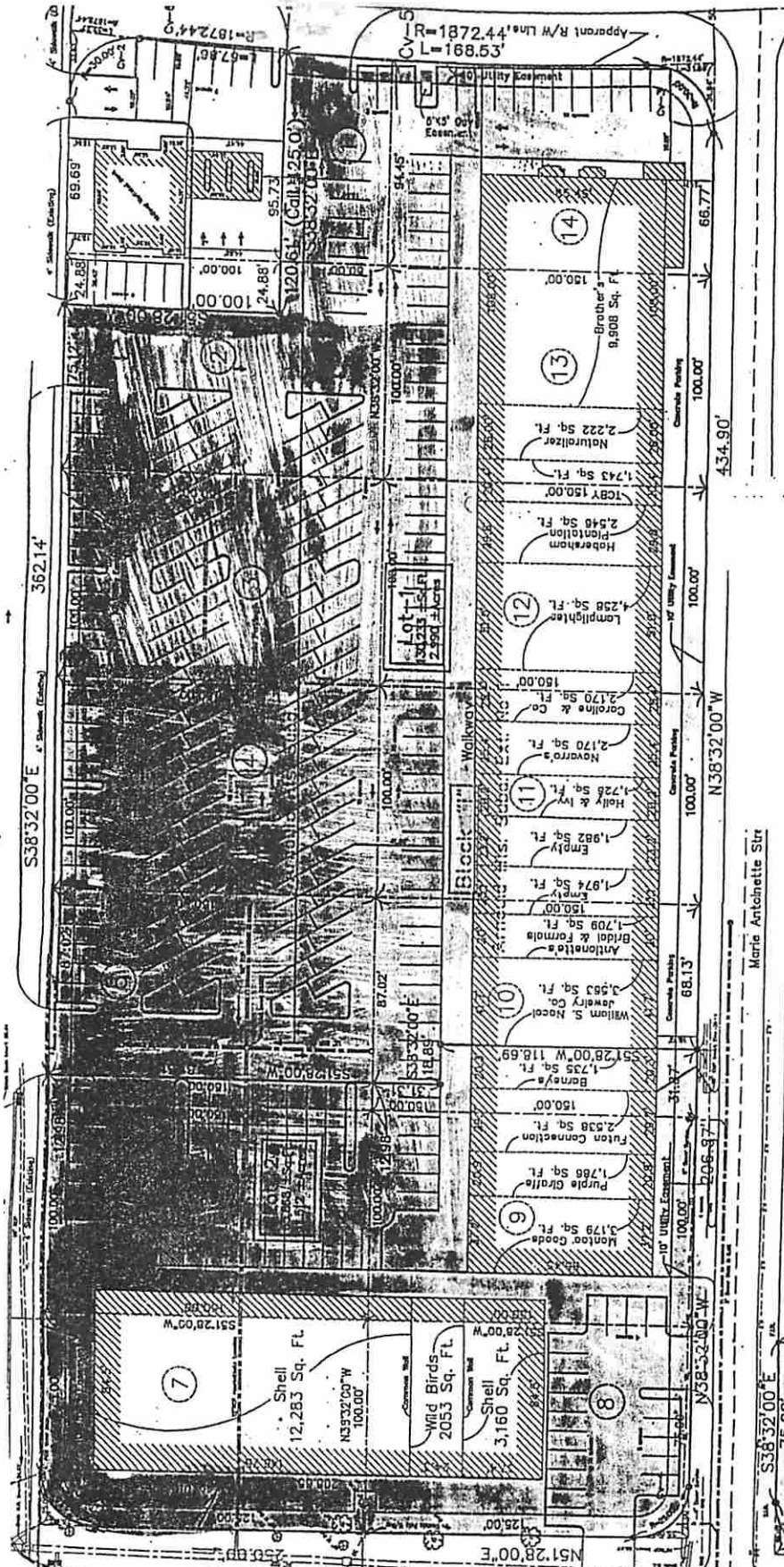


Exhibit "H"
 No Build Area

SCHEDULE I

EXCLUSIVE USE AREA

Lessor's Initials

E. E. A. IV

Lessee's Initials

[Signature]

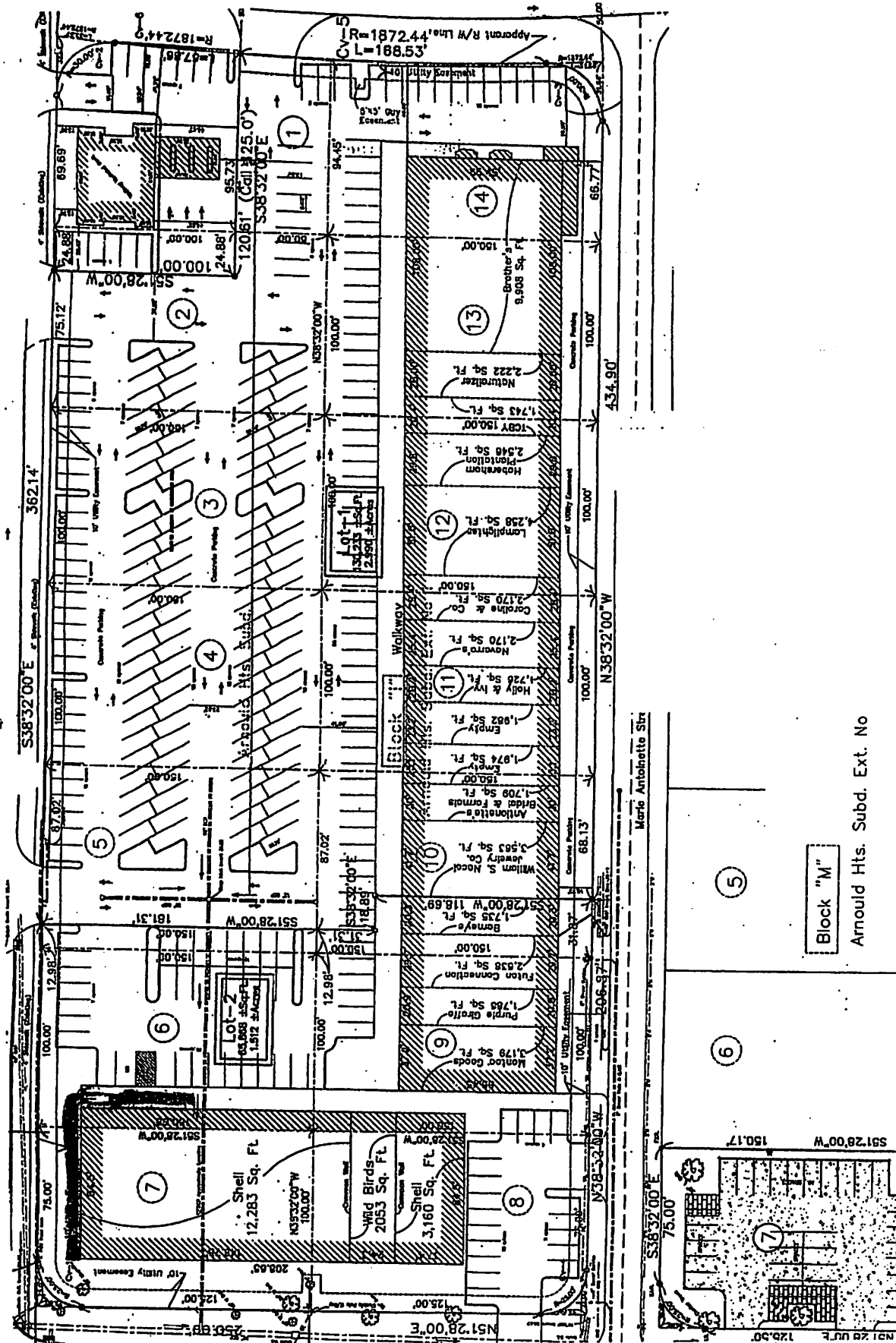


Exhibit "I" *[Signature]*
 PATIO - Optional

ADDENDUM TO LEASE AGREEMENT

This Addendum To Lease Agreement ("Addendum") is entered into as of the 10th day of August 2000, but effective for all purposes as of June 30, 2000 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "Lessor").

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (hereinafter referred to as the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 (the "Lease Agreement"); and

WHEREAS, the Lease Agreement provided in Section 1.01 that the Premises (as defined in the Lease Agreement) consisted of 4,500 square feet; and

WHEREAS, the actual Premises are to be constructed in accordance with plans and specifications prepared subsequent to the execution of the Lease Agreement; and

WHEREAS, the construction plans and specifications have been prepared and the actual square footage of the Premises as dimensioned by the plans and specifications is 4,613 square feet; and

WHEREAS, the Lessor and the Lessee wish to amend the Lease Agreement to provide for the actual square footage of the Premises and correct the Lease Agreement in all respects to reflect the accurate square footage of the Premises.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. Section 1.01 of the Lease Agreement is hereby amended by deleting therefrom the following language:

"Four Thousand Five Hundred (4,500) square feet"

and inserting in its stead the following language:

"Four Thousand Six Hundred Thirteen (4,613) square feet".



2. Section 4.01A is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"A. Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a base rent which is calculated as follows:

*Years 1 through and including 5 of the Initial Term \$ 4,228.60 per month
Years 6 through and including 10 of the Initial Term \$ 4,613.00 per month"*

3. Section 4.01C is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"C. Monthly Rental Amount. Beginning on the Commencement Date and extending through December 31, 2000, the Total Monthly Rental Payment shall be calculated as follows:

<i>Base Rent</i>	<i>\$ 4,228.60</i>
<i>Common Area Maintenance Charges</i>	<i>384.40</i>
<i>Taxes and Insurance Charge</i>	<i><u>192.20</u></i>
<i>Total Monthly Rental Payment</i>	<i><u>\$ 4,805.20"</u></i>

4. Section 31.01 is hereby amended by deleting there from the following language:

*"Years 11 through and including 15 of the Initial Term \$ 4,875.00 per month
Years 16 through and including 20 of the Initial Term \$5,250.00 per month"*

and inserting in its stead the following language,

*"Years 11 through and including 15 of the Initial Term \$ 4,997.40 per month
Years 16 through and including 20 of the Initial Term \$ 5,381.80 per month"*

5. All other terms and conditions of the Lease Agreement not specifically modified or amended hereby shall remain and be in full force and effect.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]

E. E. R. II

THUS DONE AND SIGNED as of the date set forth above, but effective for all purposes and of June 30, 2000.

WITNESSES:

Jennifer Dickson
Printed Name: Jennifer Dickson

Debra B. Hebert
Printed Name: Debra B. Hebert

Linda B. Landry
Notary Public

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla, IV
Edward E. Abdalla, IV
Managing Member

WITNESSES:

Mike Neil
Printed Name: MIKE NEIL

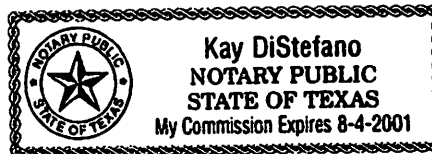
Lisa Robichau
Printed Name: Lisa Robichau

Kay DiStefano
Notary Public

LESSEE:

DELI MANAGEMENT, INC., a
Texas corporation

By: Joseph H. Tachier, Jr.
Printed Name: Joseph H. Tachier, Jr.
Printed Title: President



E. E. Abdalla, IV

ADDENDUM TO LEASE AGREEMENT

This Addendum is incorporated by reference into and is a part of that certain Lease Agreement (the "Lease") between Belle Realty of Lafayette, L.L.C., as Landlord (or "Lessor"), and Deli Management, Inc., as Tenant (or "Lessee"). The term "Premises" as used in this addendum shall mean the Premises described in the Lease. The term "Shopping Center" as used herein shall mean the "Boulevard Shopping Center Property". Except as otherwise indicated, all defined terms in the Lease shall have the same meaning in this Addendum.

1. **Conflicts.** In the event of any inconsistency between the provisions of this Addendum and any other portion of this Lease, the provisions of this Addendum shall prevail.

2. **Operating Expenses.** Notwithstanding anything contained in the Lease to the contrary, the following shall be excluded from Common Area Maintenance Charges (herein "Operating Expenses") for the purposes of the Lease:

(a) The cost of repairs or other work occasioned by fire, windstorm or other casualty.

(b) Leasing commissions, attorney's fees, costs and disbursements and other expenses incurred in connection with negotiations for leases with tenants, and similar costs incurred in connection with disputes between Landlord and tenants of the Shopping Center.

(c) Costs incurred in renovating or otherwise improving or decorating or redecorating space for tenants or other occupants in the Shopping Center or vacant leasable space in the Shopping Center.

(d) Costs of correcting defects (including latent defects) in the construction of the Shopping Center, parking areas or other improvements, or in the equipment used therein, except that, for the purposes of this subparagraph, conditions resulting from ordinary wear and tear and use, vandalism, and other matters not occasioned by construction defects shall not be deemed defects.

(e) Landlord's costs of electricity and other services sold to tenants and which are not standard for the Shopping Center, or for which Landlord is reimbursed by tenants as an additional charge or rental.

(f) The cost of any improvements, repairs, alterations, additions, changes, replacements, equipment, tools and other items which under generally accepted accounting principles are required to be classified as capital expenditures (whether incurred directly or through a lease or service contract or otherwise).

(g) Depreciation of the Shopping Center and all equipment, fixtures, improvements and facilities used in connection therewith.



(h) Material expenses in connection with services or other benefits of a type which are not standard for the Shopping Center and which are not available to Tenant without specific charge therefor, but which are provided to another tenant or occupant.

(i) Costs (including penalties, fines and associated legal expenses) incurred due to the violation by Landlord of the terms and conditions of the Lease, or any applicable federal, state, and local governmental laws, ordinances, orders, rules and regulations, which costs would not have been incurred but for such violation by Landlord.

(j) Overhead and profit increments paid to subsidiaries, partners or other affiliates of Landlord for services on or to the Shopping Center, any appurtenant garage or the property on which the Premises are located, to the extent that the costs of such services exceed competitive costs for such services rendered by persons or entities of similar skill, competence and experience, other than a subsidiary of Landlord. Management fees charged to Operating Expenses shall not exceed similar fees charged in connection with the operation of projects of like location, size, character and quality.

(k) Interest on debt or amortization payments on any mortgage or mortgages, and rental under any ground or underlying leases or lease (except to the extent the same may be made to pay or reimburse, or may be measured by, ad valorem taxes).

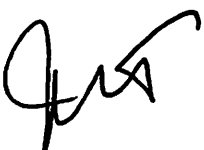
(l) Costs of Landlord's general corporate overhead and general corporate overhead and general administrative expenses, which would not be chargeable to Operating Expenses of the Shopping Center determined in accordance with generally accepted accounting principles, consistently applied; and all costs related to maintaining Landlord's existence as a corporation, partnership or other entity.

(m) Any compensation paid to clerks, attendants or other person in commercial concessions, if any, operated by Landlord.

(n) All services for which Tenant (or any other tenant of the Shopping Center specifically reimburses Landlord or for which Tenant pays directly to third persons.

(o) Advertising and promotional expenses incurred to publicize the Shopping Center primarily for leasing purposes.

Tenant, at its expense, shall have the right at all reasonable times to inspect Landlord's books and records relating to the Operating Expenses for any year in which Operating Expense charges are due, any such inspection to be conducted at Landlord's office during normal business hours; provided, however, Landlord agrees to reimburse Tenant for the cost of any such inspection conducted by or for it in the event the inspection proves that the Operating Expense charges charged to Tenant by Landlord hereunder for the period of time covered by such inspection shall have been overstated by four percent (4%) or more.

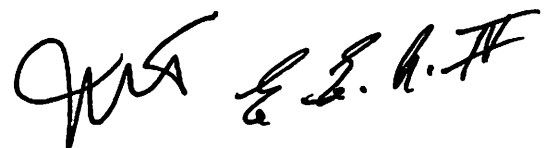
 E.E. G.#

3. **Default by Landlord.** Any provision in the Lease to the contrary notwithstanding, if Landlord fails to perform its obligations under the Lease and such failure (a) is the result of a condition within the Landlord's control, (b) interferes substantially with the normal use of the Premises or appurtenant parking and/or other common areas by Tenant as allowed herein, and (c) continues for more than three (3) consecutive business days, then the rental shall be proportionately abated until such interference is eliminated or the Premises are otherwise rendered tenantable again. Additionally, if such interference continues for a period of 30 or more consecutive days after written notice from the Landlord to the Tenant describing the nature of the Landlord's failure to perform its obligations under the Lease and Landlord's failure to cure or otherwise remedy the situation outlined in such notice within such time period, then Tenant shall have the right and option to cancel the Lease by giving written notice to Landlord within 15 days after the end of such 30 day period.

The Landlord and Tenant acknowledge and agree that construction of improvements to the area of the Shopping Center immediately adjacent to the Premises will occur subsequent to the Commencement Date of the Lease and that such construction, if performed in a workmanlike manner with ordinary care being exercised, will not be considered by the Tenant as a violation of this Section, a failure by Landlord to perform its obligations under this Lease or a substantial interference with the normal use of the Premises or the appurtenant parking and/or other common areas by Tenant.

4. **Tenant Rights to Perform Landlord's Obligations.** Notwithstanding any provision of the Lease to the contrary, if Landlord defaults in the observance or performance of any term or covenant required to be performed by it under the Lease, Tenant after not less than 30 days notice to Landlord may, but shall not be obligated to, remedy such default and in connection therewith may pay or incur reasonable expenses. Notwithstanding the foregoing, Tenant shall not have such right in the event Landlord takes action to cure the default within such 30 day period by is unable, by reason of the nature of the work involved, to cure the same within such period, provided Landlord continues such work diligently and without unnecessary delays. Additionally, Tenant shall have the right to remedy any default of an emergency nature in the event Landlord fails to commence curing any default creating an emergency situation promptly upon being given notice which is reasonable under the circumstances, and Tenant shall have the right to remedy such a default without notice (if the giving of notice is not reasonably practicable) in the event of an emergency. All sums expended or obligations incurred by Tenant in connection with the foregoing shall be paid by Landlord to Tenant upon demand and if Landlord fails to reimburse Tenant, Tenant may, in addition to any other right or remedy that Tenant may have, deduct such amount from subsequent installments of rent hereunder which from time to time thereafter become due to Landlord.

5. **Tenant Rights to Portions of Common Area.** Further, the highlighted portion of *Schedule H* shall be a "no build" area. Landlord agrees that it shall not construct or permit the erection or construction of any Shopping Center or other structure in the no build area and such area shall remain for the non-exclusive use as parking for Tenant's customers.



Tenant shall have the exclusive right to the use of the area outlined on *Schedule I*, for the purpose of providing an outdoor dining and seating area for Tenant's patrons. Tenant shall have the right, at its expense, to separate such area for such exclusive use by metal fence or other means and to restrict access to such area exclusively to tenant's patron's Landlord hereby grants to Tenant the exclusive use of such area, as well as the right to restrict access and use to such area to Tenant patrons. Landlord expressly agrees that Tenant shall not be required to provide or allow visitors to the Shopping Center or parties other than Tenant's patrons with access across or to such area. Tenant also has the right to place and use tables with umbrellas and chairs in said area. Tenant shall at its sole cost and expense be responsible for the maintenance and clearing of the exclusive use area and the Tenant shall be solely responsible for any injury or damage which occurs within the exclusive use area. The Tenant shall, upon termination or expiration of this Lease, remove any fence or other restrictive structure installed in connection with the exclusive use area.

6. **Restoration Following Casualty.** In addition to the right to terminate pursuant to the Casualty section of the Lease, if the damage to the Shopping Center in which the Premises are located or the Shopping Center has not been repaired and the Premises made ready for occupancy within 90 days after the date of the damage or destruction, then the Tenant shall have the right and option to terminate this lease by giving written notice to Landlord at any time within 15 days after the end of such 90 day period. Additionally, if the damage is to such an extent that it cannot reasonably be repaired and the Premises made ready for occupancy within 90 days after the date of the damage or destruction, then Tenant may terminate this Lease within 30 days after the date of the damage or destruction by giving written notice to Landlord. Following any casualty loss which renders the Premises untenable, Tenant shall be entitled to partial or total abatement of rent from the date of the damage or destruction until the Premises are rendered tenantable notwithstanding any negligence on the part of Tenant. If only a portion of Premises is rendered untenable, then Tenant's rent shall be partially abated taking into account the diminution in value of the Premises. If the lease is terminated, rent shall be prorated to the date of the damage or destruction and any prepaid rents or other prepaid amounts shall be refunded to Tenant. In the event Tenant is required to repair or replace any portion of the Premises all insurance proceeds purchased by Tenant shall be payable to Tenant, and rent shall abate until Tenant's business opens.

7. **Indemnification; Insurance.** Notwithstanding any term of the Lease to the contrary, the indemnification by Tenant shall be only for claims by third parties and not for claims by Landlord or Tenant. Additionally, Landlord shall indemnify and hold Tenant harmless from and against claims by third parties for any loss or damage to property or person to the extent caused by the acts or omissions of Landlord or its agents or employees. Landlord shall be responsible for obtaining and maintaining insurance covering the Shopping Center, and Tenant shall be responsible for insuring its fixtures and contents, against fire and other causes included in standard extended coverage by policies. Each party hereby releases and waives all claims, rights of recovery and causes of action against the other party, their officers, directors, employees, agents or invitees, or, in case of tenant, its subtenants, in connection with any loss or damage to the Premises, the Shopping Center, and personal property within the Shopping Center regardless of cause, including the negligence of Landlord or Tenant. Neither party, nor

its officers, directors, employees, agents or invitees, nor, in case of tenant, its subtenants, shall be liable to the other for loss or damage to its respective property. Moreover, Landlord and Tenant shall be relieved of their respective obligations of indemnity to the extent of the amount actually recovered by Landlord or Tenant from one or more of the insurance carriers of Tenant or Landlord. The indemnities and releases set forth in the Lease as modified and supplemented by this paragraph 7 shall survive the expiration of the term of this Lease.

8. **Exclusive Rights of Tenant.** Landlord agrees that Landlord shall not lease or permit the leasing or subleasing of or sell any space in the Shopping Center described on Exhibit A hereto during the term of the Lease and any extensions thereof to any person or entity who will utilize the space, or any part thereof, as a delicatessen or other restaurant whose operations are the same or similar to Tenant's operations or whose primary menu items are salads, soups, sandwiches, and baked potatoes or any one of more of said items. In the event that there is a breach of this paragraph by Landlord, Tenant's rights and remedies shall include, but not be limited to, the right at any time thereafter to terminate this Lease by written notice to Landlord, and, upon such election this Lease shall terminate, and the Tenant only shall be released and discharged from all further liability hereunder. This provision shall not apply to leases in existence as of the date of the Lease, unless Landlord has the right to consent, object or agree to a change of a use under an existing lease; in which event, Landlord shall not consent, object or agree to a use that is in violation with the exclusive rights set forth in this section.

9. **Subordination of Landlord's Lien.** Landlord hereby subordinates all statutory and contractual landlord's liens (and, provided Tenant is not in default at the time, agrees to sign documents so indicating, upon Tenant's request) to any liens or security interests covering Tenant's inventory, or financed fixtures, furniture or equipment of Tenant in favor of bona-fide third-party lenders providing financing to Tenant (including purchase-money financing). Additionally, Tenant shall be permitted to remove contents from the Premises without Landlord's consent (free and clear of any landlord's liens) whenever Tenant has not previously received from Landlord a written notice of default which remains uncured.

10. **Assignment or Subletting.** This Lease shall not be assigned nor the Premises sublet in whole or in part by Tenant without the written consent of Landlord. Landlord hereby agrees not to withhold or delay unreasonably its consent to an assignment or subletting in the event Tenant requests said consent. This paragraph shall not apply to: (i) an assignment or subletting to the parent or subsidiary of a corporate tenant; (ii) the dissolution or liquidation, merger with or consolidation into any other corporation, or the reorganization or redistribution of the manner by which Tenant is held, owned or operated; or (iii) any other transfer of the Premises, this lease, or any part of either, occasioned by a consolidation, merger, reorganization or other sale or similar event involving all or substantially all of the assets or stock of Tenant, provided net worth and credit worthiness of assignee is equal to or greater than that of Tenant or alternatively that Tenant agrees in writing with Landlord to remain primarily liable for payment and performance under the Lease. As used herein, the phrase "withhold or delay unreasonably Lessor's consent" shall not entitle Landlord to demand or receive in exchange therefore or as a condition thereto an amount or sum of rent or other

 E. B. A. IV

financial consideration not expressly required pursuant to the terms of this Lease. Notwithstanding any provision in the Lease to the contrary, any transfers by Tenant of any ownership interest of Tenant shall not constitute an assignment, sublease or other event requiring Landlord's consent or approval.

11. **Non-Disturbance of Tenant.** The subordination provided for in the Lease shall extend only to such mortgages or deeds of trust under which the mortgagee by agreement in the mortgage or deed of trust or in a separate instrument contracts in substance not to disturb Tenant's occupancy so long as Tenant performs its obligations in the Lease on condition that Tenant, when requested by the mortgagee, shall execute an attornment agreement to the mortgagee should the mortgagee succeed to the rights of the Landlord under the Lease.

12. **Landlord's Approvals.** Notwithstanding anything to the contrary contained in the Lease, it is specifically understood and agreed that as regards any approvals or matters to be performed to the satisfaction of Landlord, the Landlord shall not unreasonably withhold or delay its approval or indication of satisfaction and shall approve or be satisfied as to any matter so long as any deviation from the requirements of Landlord are of a minor and insubstantial nature such that Landlord will realize substantially the benefits to which it is entitled. Further, any matter required to be approved by Landlord hereunder which has been approved at any time shall be deemed approved for purposes hereof.

13. **Tenant Security Systems; Landlord's Right of Entry.** Notwithstanding anything to the contrary contained in the Lease, the Tenant shall be entitled to install and maintain a burglar alarm system or other surveillance system designed to protect the Premises from unauthorized entry and shall be entitled at any time to change or re-key any and all locks used in connection with the Premises; provided, however, that in the event any lock is replaced or re-keyed, Tenant shall promptly provide Landlord with keys enabling Landlord to enter the Premises pursuant to the terms of the Lease. Landlord agrees to give Tenant at least 24 hours prior notice of Landlord's intent to enter the Premises to the extent the giving of such notice is reasonably practicable.

14. **Mechanic's Liens.** Tenant shall have the right, after written notice to Landlord, to contest in good faith and all due diligence any such mechanic's lien and shall not be required to pay any claim secured by such mechanic's lien provided that such lien would not be satisfied out of the interest of Landlord in the Premises or the Shopping Center by reason of such delay, and further provided that Tenant will at Tenant's expense defend Landlord and pay all costs reasonably incurred by Landlord relating to the contest in the event Landlord is joined in any suit pertaining thereto or in the event any lien affidavit is filed claiming a lien upon Landlord's interest in the Premises or in the Shopping Center. The foregoing sentence shall not imply any right on the part of Tenant to affect Landlord's interest in the Premises or the Shopping Center.

15. **Compliance with Laws.** Landlord and Tenant agree to comply with applicable laws, with their respective responsibilities to be allocated as follows:

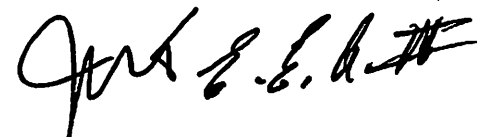
(a) Tenant will be responsible for compliance with all applicable laws, statutes, ordinances and governmental rules, regulations or requirements now in force or that may hereafter be in force with respect to the operation of Tenant's business or the Premises, including, without limitation, any accommodations or alterations that need to be made within the Premises to accommodate disabled employees and customers of Tenant pursuant to requirements under the Americans With Disabilities Act (Public Law 101-336 (July 26, 1990) and the Texas Architectural Barriers Act (Tex. Civ. Stat. Art. 9102) (collectively, the "Disability Statutes").

(b) Except for the obligations of Tenant under clause (a) above, Landlord shall be responsible for compliance with all applicable laws, statutes, ordinances and governmental rules, regulations or requirements now in force or which may be thereafter be in force that affect the Shopping Center, including with limitation, the Disability Statutes and local Shopping Center or fire code requirements applicable to the Shopping Center. If Landlord is required to make any installation in the Shopping Center pursuant to the Disability Statutes or local Shopping Center or fire codes, the cost of such installation shall be a part of Operating Expenses if such installation constitutes a day-to-day operational expense. However, if such installation constitutes a capital improvement item under generally accepted accounting principles, such installation shall be accomplished at Landlord's sole cost and expense and shall not be charged to Tenant as a part of the Operating Expenses of the Shopping Center.

16. Certain Representation, Warranties and Agreements of Landlord. Landlord represents and warrants to Tenant as follows:

(a) To the best of Landlord's knowledge, the Shopping Center does not contain any material quantities of asbestos. To the best of Landlord's knowledge neither the Shopping Center nor the land on which it is located contain any substance deemed hazardous under federal, state, or local environmental statutes, ordinances, rules, regulations, or orders ("Hazardous Materials"), other than negligible quantities of such Hazardous Materials as may typically be found in commercial construction or cleaning products used and disposed of in accordance with applicable laws. There are no underground storage tanks for petroleum products or Hazardous Materials, active or abandoned, located on the land on which the Shopping Center is located. There are no environmental liens on any of the real property comprising the Shopping Center. Landlord agrees not to cause or permit any Hazardous Materials to be produced, stored, kept, discharged, or released in or about the Shopping Center other than negligible quantities of such Hazardous Materials as may typically be found in commercial construction or cleaning products used and disposed of in accordance with applicable laws. Any provision in the Lease to the contrary notwithstanding, in no event shall Tenant be liable to Landlord for any Hazardous Materials stored, released or disposed of on the Premises prior to the commencement of the Lease by anyone other than the Tenant, or for any contamination due to Hazardous Materials in or about the Shopping Center which was not caused by Tenant.

(b) The foundation, flooring and structural components of the Premises are sufficient to support loads common to Tenant's business.



(c) Tenant will not be deemed to be a holdover tenant (and holdover rents will not apply) unless the Landlord is entitled to possession under the terms of the Lease and Tenant fails to vacated the Premises within 30 days after Tenant receives a written demand for possession from the Landlord.

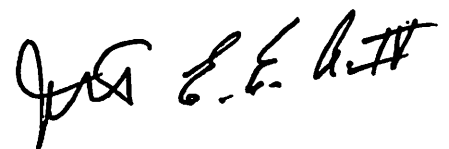
17. **Additional Warranties of Landlord.** Landlord represents and warrants that (a) as of the date of execution hereof there are no violations outstanding with any governmental agency having jurisdiction over the Premises; (b) pursuant to all applicable laws, rules and regulations promulgated by any governmental agency having jurisdiction, the Premises may be operated in the manner described in the use clause; (c) Landlord is the fee owner of the property containing the Premises and the Shopping Center of which the Premises are a part; (d) Landlord has the right to make this Lease upon the terms and for the term as set forth herein; and (e) use by the Tenant as described by this Lease and Tenant's plans and specifications is permitted by deed restriction and any other covenants governing the Shopping Center, the Premises or the Landlord. In the event of Landlord's breach of the representations and warranties as set forth herein, in addition to all other rights and remedies of Tenant pursuant to the Lease or by law, Landlord agrees to indemnify and hold harmless Tenant for all loss, cost, expense and damage (including reasonable attorneys fees) incurred as a result thereof.

18. **Renovations.** Tenant may make all non-structural, cosmetic renovations under \$15,000.00 without Landlord's consent. Landlord agrees not to unreasonably withhold or delay its consent to any other alteration or renovation.

19. **Interference.** Notwithstanding the provisions of any part of this Lease, Landlord shall not (a) interfere with the visibility, ingress or egress of the Premises, (b) disrupt Tenant's business, (c) reduce the usable area of the Premises, (d) reduce the number of parking spaces that currently exist in the Shopping Center, or (e) expose any pipes, conduits, utility lines or wires in the Premises, (f) the Premises shall at all times during the term hereof have unobstructed access to the common areas of the Shopping Center, which in turn shall have access to public road(s) abutting the property on which the Shopping Center is located. In the event of a violation of this paragraph, in addition to all other rights and remedies Tenant may have pursuant to this Lease or by law, the fixed minimum rent payable pursuant to this Lease shall be reduced in the same proportion as Tenant's gross sales are reduced as a result of Landlord's violation of this paragraph.

20. **Default.**

(a) Notwithstanding the provisions of the Lease, Tenant shall not be deemed to be in default until Tenant has received reasonable notice of such default. For purposes of this paragraph, "reasonable notice" shall be at least 5 days in the case of payment of rentals, and at least 30 days for all other events constituting a default. If Tenant cures such default within this notice period, then Landlord shall not be entitled to avail itself of the remedies described in the Lease. Additionally, Landlord shall not be entitled to exercise its rights under any provision of the Lease in the event Tenant takes action to cure a default within this notice period, but is unable, by reason of the nature of the work involved, to cure the same within



such period, provided Tenant continues to work thereafter diligently and without unnecessary delays.

(b) Provided Tenant is in compliance with all other provisions of this Lease, including the payment of all rent and additional rent (after notice and time to cure), (i) Landlord agrees that it will not invoke any of the remedies set forth in this Lease in the event of bankruptcy, insolvency or default, and (ii) Tenant will not be joined as a party defendant in any action or proceeding for the purpose of terminating Tenant's interest and estate under the Lease.

(c) No remedy set forth in the Lease shall permit Landlord to accelerate rentals and other charges prior to their due date.

(d) Tenant shall not be deemed to be in default of the terms and conditions of this Lease nor shall Tenant be charged any penalty, monetary or otherwise, as a result of (a) any temporary closing arising from (a) renovations or repairs to the Premises, or (b) a force majeure.

(e) Landlord agrees that it shall mitigate any damages it incurs as a result of a default by Tenant.

21. **Utilities.** All utilities shall be extended to usable locations within the lease premises by the Landlord. Utilities shall include 1) sanitary sewer, 2) potable water, 3) natural gas, and 4) electric power, and each utility shall comply with the following requirements:

- 1) Sanitary sewer:
4" line to receive 1) 4" non-grease waste line from restrooms and possibly dishwasher and 2) 4" greasy waste line from kitchen equipment and devices. The Landlord shall make space available outside the lease premises for the grease interceptor (approx. 5' x 9' in footprint). A usable path for connection of the grease interceptor shall be established by the Landlord.
- 2) Potable water: 2" water line at minimum 45 psi pressure. Water should be separately metered.
- 3) Natural gas: Service for water heater (140,000 BTUH) and convection oven (55,000 BTUH).
- 4) Electric power: 120/208V, 3 phase, 4 wire; 600 amp service. Remote disconnects and extension from remote meter banks shall be furnished and installed by Landlord

22. **Termination.** If, at any time during the Term of this Lease after the initial twelve (12) month period following the Commencement Date, less than seventy percent (70%) of the gross leasable space in the Shopping Center or Shopping Center of which the Premises is a part is fully occupied and open for business, then Tenant shall have the right to cancel this Lease anytime thereafter upon thirty (30) days written notice to Landlord, in which event the

Landlord shall promptly return to the Tenant the security deposit and any other sums which may be due the Tenant upon the natural expiration of this Lease.

23. **Condemnation.** If all or any portion of the Premises is condemned or if twenty percent (20%) of the parking area described in *Schedule C* is taken, then this Lease shall terminate as of the date of such taking. In the event of condemnation, nothing shall prevent Tenant from receiving any sums awarded on account of Tenant's damages and for or on account of any cost or loss to which Tenant may incur, including but not limited to, Tenant's moving expenses and loss of business, profits, leasehold interest, leasehold improvements, inventory and trade fixtures.

24. **Tenant Signs.** Landlord hereby acknowledges and approve Tenant's standard sign criteria attached hereto as *Schedule G*. Also, Tenant shall be permitted to place such sign on the exterior side of the Premises facing Arnould Boulevard. Notwithstanding anything in this Lease to the contrary, Tenant shall have the right to hang a "Coming Soon" and "Now Open" banner on the outside of the Premises. Tenant shall also have the right to place two (2) lighted neon signs in each window.

25. **Subrogation.** To the extent not heretofore released by the parties, in the event that either Landlord or Tenant sustains a loss by reason of fire or other casualty which is a type of risk covered by such part's fire and extended coverage insurance policy and/or general liability policy, and such fire, loss, or casualty is caused in whole or in part by the acts or omissions of the other party, its agents, servants or employees, then the party sustaining such loss agrees that to the extent the party sustaining such loss is compensated for such loss by its aforesaid insurance proceeds, the party sustaining such loss shall have no right to recovery against the other party, or the agents, servants or employees of the other party; and no third party shall have any right of recovery by way of subrogation or assignment or otherwise. In as much as the above mutual waiver will preclude the assignment of any aforesaid claim by way of subrogation (or otherwise) to an insurance (or any other person), each party hereto agrees to give to each insurance company which may issue to its policies of fire and extended insurance and/or general liability insurance, written notice of the terms of said mutual waivers, and to have the invalidation of said insurance coverages by reason of said waivers. In the event that any applicable law shall now be in force or hereinafter be enacted which would prevent such waiver, or in the event either party shall be unable to secure the insurance referred to herein by reason of this provision, then, and in that event only, the denial of the right of subrogation herein provided shall be deemed waived.

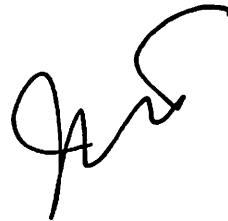
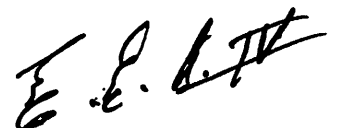
26. **Quiet Enjoyment.** Landlord does hereby bind itself to warrant and defend all and singular the premises against every person whomever claiming or to claim any right, title or interest in or to any part thereof during the term of this Lease, including any renewal or extension hereof. Landlord further warrants that during the term of this Lease, Tenant shall peaceably and quietly hold and enjoy the premises for the term hereby demised without hindrance or interruption by Landlord or any other person or persons lawfully or equitably claiming any right, title or interest thereto.

27. **Construction.**

Tenant Work. Neither Tenant nor its general contractor shall be required to obtain a performance or payment bond or a bond similar in nature to either of such bonds. Landlord hereby approves Tenant and/or Broadway Construction Company, Inc., as general contractor, and Landlord agrees that Tenant may prepare its own plans and shall not be required to employ an engineer or architect to prepare or certify such plans.

Tenant (or its general contractor) shall, at its sole cost and expense (to the extent said cost exceeds any Tenant allowances provided for in this lease) commence and pursue to completion the construction of the Tenant's Work in accordance with the Lease after it receives all of the following: (i) permits from all appropriate governmental authorities, (ii) approvals from the Landlord, (iii) approvals from any non-governmental authorities, and (iv) the completion of all work to be performed by Landlord. Tenant will provide and install all trade equipment, furniture, fixtures, and effects of every description necessary or appropriate for Tenant's business (other than those specifically to be provided by Landlord). Tenant and/or its general and subcontractors shall have access to the common area adjacent to the Premises.

If Tenant fails to open the Premises for business (except as may otherwise be excused by the terms of the Lease) on the Commencement Date, then Tenant shall be required to pay only the requisite minimum monthly rental and other payments, and Landlord hereby waives the right to any other recourse arising under the lease.

A handwritten signature in black ink, appearing to be 'JAS' or similar, located in the lower right quadrant of the page.A handwritten signature in black ink, appearing to be 'E. E. L. IV' or similar, located in the bottom right corner of the page.

In witness whereof, the parties hereby sign this Addendum this 30 day of June, 2000.

WITNESSES:

Linda H. Landry
Printed Name: Linda H. Landry

Jennifer Dinksen
Printed Name: Jennifer Dinksen

LANDLORD:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla, IV
Edward E. Abdalla, IV
Managing Member

[Signature]
Notary Public

WITNESSES:

Lisa Robichau
Printed Name: LISA Robichau

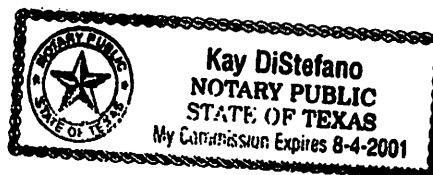
Willa White
Printed Name: Willa White

TENANT:

DELI MANAGEMENT, INC., a
Texas corporation

By: [Signature]
Printed Name: Joseph T. [Signature]
Printed Title: President

[Signature]
Notary Public



ADDENDUM TO LEASE AGREEMENT

This Addendum To Lease Agreement ("Addendum") is entered into as of the 10th day of August 2000, but effective for all purposes as of June 30, 2000 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "Lessor").

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (hereinafter referred to as the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 (the "Lease Agreement"); and

WHEREAS, the Lease Agreement provided in Section 1.01 that the Premises (as defined in the Lease Agreement) consisted of 4,500 square feet; and

WHEREAS, the actual Premises are to be constructed in accordance with plans and specifications prepared subsequent to the execution of the Lease Agreement; and

WHEREAS, the construction plans and specifications have been prepared and the actual square footage of the Premises as dimensioned by the plans and specifications is 4,613 square feet; and

WHEREAS, the Lessor and the Lessee wish to amend the Lease Agreement to provide for the actual square footage of the Premises and correct the Lease Agreement in all respects to reflect the accurate square footage of the Premises.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. Section 1.01 of the Lease Agreement is hereby amended by deleting therefrom the following language:

"Four Thousand Five Hundred (4,500) square feet"

and inserting in its stead the following language:

"Four Thousand Six Hundred Thirteen (4,613) square feet".



2. Section 4.01A is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"A. Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a base rent which is calculated as follows:

*Years 1 through and including 5 of the Initial Term \$ 4,228.60 per month
Years 6 through and including 10 of the Initial Term \$ 4,613.00 per month"*

3. Section 4.01C is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"C. Monthly Rental Amount. Beginning on the Commencement Date and extending through December 31, 2000, the Total Monthly Rental Payment shall be calculated as follows:

<i>Base Rent</i>	<i>\$ 4,228.60</i>
<i>Common Area Maintenance Charges</i>	<i>384.40</i>
<i>Taxes and Insurance Charge</i>	<i><u>192.20</u></i>
<i>Total Monthly Rental Payment</i>	<i><u>\$ 4,805.20"</u></i>

4. Section 31.01 is hereby amended by deleting there from the following language:

*"Years 11 through and including 15 of the Initial Term \$ 4,875.00 per month
Years 16 through and including 20 of the Initial Term \$5,250.00 per month"*

and inserting in its stead the following language,

*"Years 11 through and including 15 of the Initial Term \$ 4,997.40 per month
Years 16 through and including 20 of the Initial Term \$ 5,381.80 per month"*

5. All other terms and conditions of the Lease Agreement not specifically modified or amended hereby shall remain and be in full force and effect.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]



THUS DONE AND SIGNED as of the date set forth above, but effective for all purposes and of June 30, 2000.

WITNESSES:

Jennifer Dinkson
Printed Name: Jennifer Dinkson

Debra B. Hebert
Printed Name: Debra B Hebert

Linda G. Landry
Notary Public

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla, IV
Edward E. Abdalla, IV
Managing Member

WITNESSES:

Mire Neil
Printed Name: MIRE NEIL

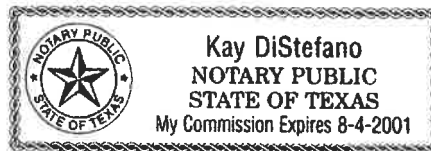
Lisa Robichau
Printed Name: Lisa Robichau

Kay DiStefano
Notary Public

LESSEE:

DELI MANAGEMENT, INC., a
Texas corporation

By: Joseph W. Tachier, Jr.
Printed Name: JOSEPH W. Tachier, Jr.
Printed Title: President



E. E. Abdalla, IV

THIRD ADDENDUM TO LEASE AGREEMENT

This Third Addendum To Lease Agreement ("Third Addendum To Lease Agreement") is entered into as of the dates set forth below, but effective for all purposes and in all manners as of May 31, 2010 ("Effective Date") by and between

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Blvd., Lafayette, Louisiana 70506 (the "Lessor")

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 ("**Original Lease Agreement**") as amended by that certain Addendum to Lease Agreement dated as of June 30, 2010 ("**First Addendum to Lease Agreement**") and that certain Addendum to Lease Agreement dated as of August 10, 2000 ("**Second Addendum to Lease Agreement**") (the Original Lease Agreement, First Addendum to Lease Agreement, and Second Addendum to Lease Agreement are hereinafter collectively referred to as the "**Lease Agreement**");

WHEREAS, the Lease Agreement provides for an initial term of One Hundred Twenty (120) months ("**Initial Term**") which Initial Term is set to expire October 31, 2010;

WHEREAS, the Lease Agreement provides that the Lessee shall have an option to renew ("**Option to Renew**") the lease for an additional term of One Hundred Twenty (120) months;

WHEREAS, the Lessee wishes to exercise the Option to Renew granted in the Lease Agreement and Lessor and the Lessee wish to amend the Lease Agreement to provide for an extension of the Lease Agreement for an additional One Hundred Twenty (120) month period ("**Extension Term**");

WHEREAS, in connection with the Option to Renew and the Extension Term, the Lessee wishes to perform certain construction work within the Premises as set forth in Exhibit "A" to this Third Addendum to Lease Agreement ("**Proposed Construction Work**") and the Lessor wishes to approve and allow Lessee to perform the Proposed Construction Work;

WHEREAS, the Lessee has proposed and the Lessor has agreed that the Lessor will contribute the amount of Twenty Two Thousand Five Hundred and No/100 Dollars (\$22,500.00) in the form of rent abatement in the amount of One Thousand Eight

Hundred Seventy Five and No/100 Dollars per month for a period of Twelve (12) months, during the Extension Term, beginning November 1, 2010 and ending October 31, 2011 ("**Lessor Construction Contribution**") and the Lessor wishes to agree to the proposed Lessor Construction Contribution; and

WHEREAS, the Lessor and the Lessee wish to amend the Lease Agreement with this Third Addendum to Lease Agreement to evidence (i) the Lessee's exercising of the Option to Renew as of the Effective Date; (ii) the approval by the Lessor of the Proposed Construction Work; (iii) the Lessor's Construction Contribution; and (iv) the Base Rent and Additional Rent to be charged during the Extension Term.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. The Lessor and the Lessee do, by execution hereof, agree that the Option to Renew, as defined in the Lease Agreement, is being exercised by the Lessee and accordingly is in full force and effect as of the Effective Date and the Lease Agreement is hereby extended for One Hundred Twenty (120) months beginning November 1, 2010 and expiring October 31, 2020 ("**First Renewal Term**").
2. The Lessor and the Lessee hereby agree that the Lessee will perform the Proposed Construction Work as set forth in Exhibit "A" to this Third Addendum to Lease Agreement. The parties further agree that the Proposed Construction Work will be performed by the Lessee and shall be in conformance with all applicable local, state or federal laws and regulations.
3. The Lessor and the Lessee hereby agree that the Lessor will contribute the amount of Twenty Two Thousand Five Hundred and No/100 Dollars (\$22,500.00) in the form of rent abatement in the amount of One Thousand Eight Hundred Seventy Five and No/100 Dollars per months for a period of Twelve (12) months beginning November 1, 2010 and ending October 31, 2011.
4. During the First Renewal Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 1.35 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$1.15 per square foot of the Premises per year, payable monthly and iii) Base Rent shall be a sum of \$3,122.40 per month for months One (1) – Twelve (12) of the First Renewal Term, \$4,997.40 per month for months Thirteen (13) - Sixty (60) of the First Renewal Term and \$5,381.80 per month for months Sixty One (61) - One Hundred Twenty (120) of the First Renewal Term.

5. The Total Monthly Rental Payments shall be as follows:

First Renewal Term - Months One (1) - Twelve (12):

Base Rent	\$ 3,122.40
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 4,083.44</u>

First Renewal Term - Months Thirteen (13) - Sixty (60):

Base Rent	\$ 4,997.40
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 5,958.45</u>

First Renewal Term - Months Sixty One (61) - One Hundred Twenty (120):

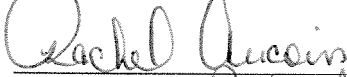
Base Rent	\$ 5,381.80
Common Area Maintenance Charges	518.96
Taxes and Insurance Charges	<u>442.08</u>
Total Monthly Rental Payment	<u>\$ 6,342.87</u>

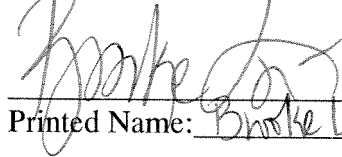
6. All terms and conditions of the Lease Agreement not specifically amended or modified herein shall remain in full force and effect as set forth in the Lease Agreement.
7. Capitalized terms used herein and otherwise defined herein shall have the meanings ascribed to such terms in the Lease Agreement.
8. The Lessor and the Lessee hereby agree that the terms and conditions of this Third Addendum to Lease Agreement shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

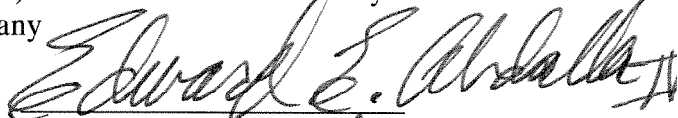

Printed Name: Rachel Accoin


Printed Name: Brooke Loefer

LESSOR:

**BELLE REALTY OF LAFAYETTE,
L.L.C.**, a Louisiana limited liability
company

By:

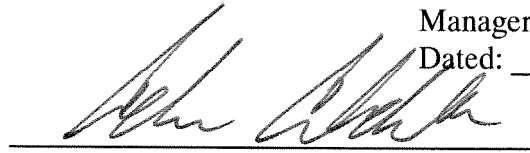


Edward E. Abdalla, IV

Manager

Dated:

5/24/10


Notary Public

ADAM A. ABDALLA
BAR ROLL NUMBER 30370
NOTARY PUBLIC, STATE OF LOUISIANA
MY COMMISSION EXPIRES AT DEATH

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

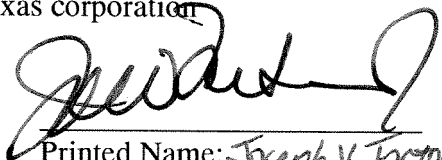
WITNESSES:


Printed Name: Joseph S. Edwards


Printed Name: James W. McLaughlin

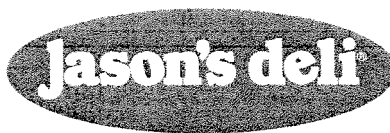
LESSEE:

DELI MANAGEMENT, INC.,
a Texas corporation

By: 
Printed Name: Joseph V. Tortorice, Jr
Printed Title: President
Dated: May 20, 2010


Notary Public





April 8, 2010

Richard L. Becker, info@lawbecker.com
Becker and Associates
910 Harding Street
Lafayette, Louisiana 70503

Re: Jason's Deli located in On the Boulevard Shopping Center, Lafayette, Louisiana

Mr. Becker,

Thank you for the letter dated March 9, 2010. Let me first apologize for not getting back with you sooner regarding the renewal of the above location's lease and the renovations that we (Deli Management, Inc – DMI) would like to have completed. Below you will find the work that DMI would currently like to have completed.

- 1.) Two new roof top HVAC units with new distribution duct work. These units will be of the same or better quality than currently exists. - \$20,000
- 2.) Bathroom remodel to update the décor and provide a cleaner feeling. - \$25,000
- 3.) Cover the current stained concrete dining room floor with new 20" porcelain tile. - \$ 30,000
- 4.) New interior sign package that will include the removal of the black and white pictures, replacement of the menu board signs, new flat screen TVs and fresh paint on all of the walls. - \$15,000

The above improvements will come at a total cost of approximately \$90,000. During our meeting we requested that the Landlord, Mr. Abdalla, contribute \$22,500 towards the cost of these renovations. The costs that have been estimated above are based on the costs of similar work completed in Jason's Deli locations throughout the country. Our goal is always to ensure that first class contractors doing first class work for a reasonable price are used for these remodels and new construction.

Please let me know that Landlord will be agreeable to these terms and how you would like for us to proceed from this point.

Sincerely,

Joseph S. Edwards

Joseph S. Edwards

FOURTH ADDENDUM TO LEASE AGREEMENT

This Fourth Addendum to Lease Agreement ("**Fourth Addendum to Lease Agreement**") is entered into as of the dates set forth below, but effective for all purposes as of November 1, 2020 ("**Effective Date**") by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is P.O. Box 62230, Lafayette, Louisiana 70596 (the "**Lessor**");

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 350 Pine Street, Suite 1775, Beaumont, Texas 77701 (the "**Lessee**").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 ("**Original Lease Agreement**"), as amended by that certain Addendum to Lease Agreement dated as of June 30, 2000 ("**First Addendum to Lease Agreement**"), that certain Addendum to Lease Agreement dated as of August 10, 2000 ("**Second Addendum to Lease Agreement**"), and that certain Third Addendum to Lease Agreement dated as of May 31, 2010 ("**Third Addendum to Lease Agreement**"; the Original Lease Agreement, First Addendum to Lease Agreement, Second Addendum to Lease Agreement, and Third Addendum to Lease Agreement are hereinafter collectively referred to as the "**Lease Agreement**");

WHEREAS, the Lease Agreement provides for an Extension Term of One Hundred Twenty (120) months, which Extension Term is set to expire October 31, 2020;

WHEREAS, the Lessee desires to extend the Lease Agreement for a Second Extension Term for an additional term of Sixty (60) months ("**Second Extension Term**"), and the parties wish to amend the Lease Agreement to provide for matters related to the said Second Extension Term.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. The Lessor and the Lessee do, by execution hereof, agree that the Lease Agreement is hereby extended for Sixty (60) months beginning November 1, 2020 and expiring October 31, 2025 ("**Second Extension Term**").
2. During the Second Extension Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 2.10 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$ 1.85 per square foot of the Premises per year, payable monthly and iii) Base Rent shall be a sum of \$ 6,246.77 per month for months One (1) through Sixty (60) of the Second Extension Term.

3. Lessee shall have the option to renew the Lease Agreement for one (1) additional sixty (60) month term upon the expiration of the Second Extension Term ("**Option Term**"). During the Option Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 2.10 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$ 1.85 per square foot of the Premises per year, payable monthly, and iii) Base Rent shall be a sum of \$ 6,631.19 per month for months One (1) through Sixty (60) of the Option Term.
4. The Total Monthly Rental Payments shall be as follows:

Second Extension Term - Months One (1) - Sixty (60):

Base Rent	\$ 6,246.77
Common Area Maintenance Charges	807.28
Taxes and Insurance Charges	<u>711.17</u>
Total Monthly Rental Payment	<u>\$ 7,765.22</u>

Option Term - Months One (1) - Sixty (60):

Base Rent	\$ 6,631.19
Common Area Maintenance Charges	807.28
Taxes and Insurance Charges	<u>711.17</u>
Total Monthly Rental Payment	<u>\$ 8,149.64</u>

5. Section 14.01 of the Lease shall be amended to include the following:

Landlord shall indemnify, defend and hold Tenant harmless from any and all claims, demands and/or causes of action arising out of the negligence and/or gross negligence of Landlord occurring on or after the Effective Date of this Fourth Addendum to Lease Agreement.

6. All terms and conditions of the Lease Agreement not specifically amended or modified herein shall remain in full force and effect as set forth in the Lease Agreement.

7. Capitalized terms used herein and otherwise defined herein shall have the meanings ascribed to such terms in the Lease Agreement.

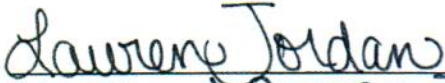
8. The Lessor and the Lessee hereby agree that the terms and conditions of this Fourth Addendum to Lease Agreement shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center.

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:



Printed Name: Stephanie Andala

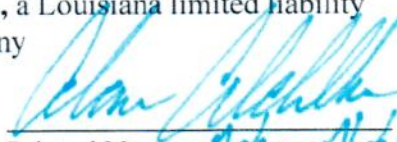


Printed Name: Lauren Jordan

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By:



Printed Name: Adam Andala

Printed Title: Authorized Representative

Dated: 5/2/2020

Notary Public



THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

Christina Willson
Printed Name: Christina Willson

Raymond Buckingham
Printed Name: Raymond Buckingham

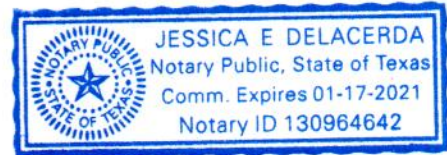
LESSEE:

DELI MANAGEMENT, INC.,
a Texas corporation

By: Troy Cormier

Printed Name: Troy Cormier
Printed Title: CEO
Dated: 3/3/2020

Jessica E Delacerta 3-3-2020
Notary Public



Handwritten signature/initials

FIFTH ADDENDUM TO LEASE AGREEMENT

This Fifth Addendum to Lease Agreement ("Fifth Addendum to Lease Agreement") is entered into as of the dates set forth below, but effective for all purposes as of November 1, 2025 ("Effective Date") by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is P.O. Box 62230, Lafayette, Louisiana 70596 (the "Lessor");

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 350 Pine Street, Suite 1775, Beaumont, Texas 77701 (the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 ("Original Lease Agreement"), as amended by:

that certain First Addendum to Lease Agreement ("First Addendum to Lease Agreement"),
that certain Second Addendum to Lease Agreement ("Second Addendum to Lease Agreement"),
that certain Third Addendum to Lease Agreement ("Third Addendum to Lease Agreement"),
that certain Fourth Addendum to Lease Agreement ("Fourth Addendum to Lease Agreement").

The Original Lease Agreement, First Addendum to Lease Agreement, Second Addendum to Lease Agreement, Third Addendum to Lease Agreement, and Fourth Addendum to Lease Agreement are hereinafter collectively referred to as the ("Lease Agreement");

WHEREAS, the Lease Agreement provides for an Extension Term of Sixty (60) months, which Extension Term is set to expire October 31, 2025;

WHEREAS, the Lessee desires to exercise its option to extend the Lease Agreement for a Third Extension Term for an additional term of Sixty (60) months ("Third Extension Term"), and the parties wish to amend the Lease Agreement to provide for matters related to the said Third Extension Term.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. The Lessor and the Lessee do, by execution hereof, agree that the Lease Agreement is hereby

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extended for Sixty (60) months beginning November 1, 2025 and expiring October 31, 2030 ("Third Extension Term").

2. During the Third Extension Term, the Total Monthly Rental Payment shall be calculated as follows:

RENEWAL TERM			
UNIT 149	MONTH 1-60	4613	4613
RENT ITEM	PER SQ FT	PER MONTH	PER YEAR
BASE RENT	\$ 17.25	\$ 6,631.19	\$ 79,574.25
COMMON AREA MAINTENANCE	\$ 2.10	\$ 807.28	\$ 9,687.30
TAXES	\$ 0.95	\$ 365.20	\$ 4,382.35
INSURANCE	\$ 1.95	\$ 749.61	\$ 8,995.35
TOTAL	\$ 22.25	\$ 8,553.27	\$ 102,639.25

3. Lessee shall have the option to renew the Lease Agreement for one (1) additional sixty (60) month term upon the expiration of the Third Extension Term ("Option Term"). During the Option Term, the Total Monthly Rental Payment shall be calculated as follows:

OPTION TERM			
UNIT 149	MONTH 1-60	4613	4613
RENT ITEM	PER SQ FT	PER MONTH	PER YEAR
BASE RENT	\$ 18.85	\$ 7,161.69	\$ 85,940.22
COMMON AREA MAINTENANCE	\$ 2.10	\$ 807.28	\$ 9,687.30
TAXES	\$ 0.95	\$ 365.20	\$ 4,382.35
INSURANCE	\$ 1.95	\$ 749.61	\$ 8,995.35
TOTAL	\$ 23.85	\$ 9,083.78	\$ 108,740.22

5. All terms and conditions of the Lease Agreement not specifically amended or modified herein shall remain in full force and effect as set forth in the Lease Agreement.
6. Capitalized terms used herein and otherwise defined herein shall have the meanings ascribed to such terms in the Lease Agreement.
7. The Lessor and the Lessee hereby agree that the terms and conditions of this Fifth Addendum to Lease Agreement shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center.

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

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WITNESSES:

Printed Name: _____

Printed Name: _____

LESSOR:

BELLE REALTY OF LAFAYETTE, L.L.C.,
a Louisiana limited liability company

By: *Adam Abdulla*
Printed Name: Adam Abdulla
Printed Title: Authorized Representative
Dated: April 7, 2025

Notary Public

Notary Public

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

Printed Name: _____

Printed Name: _____

LESSEE:

DELI MANAGEMENT, INC.,
a Texas corporation

By:


Printed Name: Troy Carmier
Printed Title: C.E.O.
Dated: 4/7/2025

Notary Public